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H.R.3967 - Honoring our PACT Act of 2022

117th Congress (2021-2022)

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Calendar No. 388

117TH CONGRESS
2D SESSION

H. R. 3967

To improve health care and benefits for veterans exposed to toxic substances, and for other purposes.

IN THE SENATE OF THE UNITED STATES

MARCH 3, 2022

Received

MAY 24, 2022

Read the first time

MAY 25, 2022

Read the second time and placed on the calendar

AN ACT

To improve health care and benefits for veterans exposed to toxic substances, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; REFERENCES TO TITLE 38, UNITED STATES CODE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the "Honoring our Promise to Address Comprehensive Toxics Act of 2021" or the "Honoring our PACT Act of 2021".

(b) MATTERS RELATING TO AMENDMENTS TO TITLE 38, UNITED STATES CODE.—

(1) REFERENCES.—Except as otherwise expressly provided, when in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of title 38, United States Code.

(2) AMENDMENTS TO TABLES OF CONTENTS.—Except as otherwise expressly provided, when an amendment made by this Act to title 38, United States Code, adds a section or larger organizational unit to that title or amends the designation or heading of a section or larger organizational unit in that title, that amendment also shall have the effect of amending any table of sections in that title to alter the table to conform to the changes made by the amendment.

(c) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; references to title 38, United States Code; table of contents.

TITLE I—EXPANSION OF HEALTH CARE ELIGIBILITY

Subtitle A—Toxic-Exposed Veterans

Sec. 101. Short title.

Sec. 102. Definitions relating to toxic-exposed veterans.

Sec. 103. Expansion of health care for specific categories of toxic-exposed veterans and veterans supporting certain overseas contingency operations.

Sec. 104. Assessments of implementation and operation.

Sec. 105. Revision of breast cancer mammography policy of Department of Veterans Affairs to provide mammography screening for veterans who served in locations associated with toxic exposure.

Subtitle B—Certain Veterans Of Combat Service And Other Matters

Sec. 111. Expansion of period of eligibility for health care for certain veterans of combat service.

Sec. 112. Authorization period for emergency treatment in non-Department of Veterans Affairs medical facilities.

TITLE II—TOXIC EXPOSURE PRESUMPTION PROCESS

Sec. 201. Short title.

Sec. 202. Improvements to ability of Department of Veterans Affairs to establish presumptions of service connection based on toxic exposure.

Sec. 203. Reevaluation of claims for compensation involving presumptions of service connection.

TITLE III—IMPROVING THE ESTABLISHMENT OF SERVICE CONNECTION PROCESS FOR TOXIC-EXPOSED VETERANS

Sec. 301. Short title.
Sec. 302. Presumptions of toxic exposure.
Sec. 303. Medical nexus examinations for toxic exposure risk activities.
TITLE IV—PRESUMPTIONS OF SERVICE CONNECTION
Sec. 401. Treatment of veterans who participated in cleanup of Enewetak Atoll as radiation-exposed veterans for purposes of presumption of service connection of certain disabilities by Department of Veterans Affairs.
Sec. 402. Treatment of veterans who participated in nuclear response near Palomares, Spain, or Thule, Greenland, as radiation-exposed veterans for purposes of presumption of service connection of certain disabilities by Department of Veterans Affairs.
Sec. 403. Presumptions of service connection for diseases associated with exposures to certain herbicide agents for veterans who served in certain locations.
Sec. 404. Addition of additional diseases associated with exposure to certain herbicide agents for which there is a presumption of service connection for veterans who served in certain locations.
Sec. 405. Improving compensation for disabilities occurring in Persian Gulf War veterans.
Sec. 406. Presumption of service connection for certain diseases associated with exposure to burn pits and other toxins.
TITLE V—RESEARCH MATTERS
Sec. 501. Interagency working group on toxic exposure research.
Sec. 502. Data collection, analysis, and report on treatment of veterans for illnesses related to toxic exposure.
Sec. 503. Studies related to veterans who served in Southwest Asia and certain other locations.
Sec. 504. Study on health trends of post 9/11 veterans.
Sec. 505. Study on cancer rates among veterans.
Sec. 506. Study on feasibility and advisability of furnishing hospital care and medical services to dependents of veterans who participated in toxic exposure risk activities.
Sec. 507. Study on health effects of waste related to Manhattan Project on certain veterans.
Sec. 508. Study on toxic exposure and mental health outcomes.
Sec. 509. Study on veterans in Territories of the United States.
Sec. 510. Department of Veterans Affairs public website for toxic exposure research.
Sec. 511. Biennial report on health effects of jet fuels used by Armed Forces.
TITLE VI—IMPROVEMENT OF RESOURCES AND TRAINING REGARDING TOXIC-EXPOSED VETERANS
Sec. 601. Short title; definitions.
Sec. 602. Publication of list of resources of Department of Veterans Affairs for toxic-exposed veterans and outreach program for such veterans and caregivers and survivors of such veterans.
Sec. 603. Incorporation of toxic exposure questionnaire during primary care appointments.
Sec. 604. Training for personnel of the Department of Veterans Affairs with respect to toxic-exposed veterans.
Sec. 605. Guidelines for active duty military on potential risks and prevention of toxic exposures.
TITLE VII—REGISTRIES, RECORDS, AND OTHER MATTERS
Sec. 701. Registry of individuals exposed to per- and polyfluoroalkyl substances on military installations.
Sec. 702. Fort McClellan Health Registry.
Sec. 703. Independent study on Individual Longitudinal Exposure Record.
Sec. 704. Biannual report on Individual Longitudinal Exposure Record.
Sec. 705. Correction of exposure records by members of the Armed Forces and veterans.

Sec. 706. Federal cause of action relating to water at Camp Lejeune, North Carolina.
Sec. 707. Veterans Toxic Exposures Fund.
Sec. 708. Authorization of electronic notice in claims under laws administered by the Secretary of Veterans Affairs.
Sec. 709. Authorization of appropriations for expansion of claims automation.
Sec. 710. Non-applicability of non-Department of Veterans Affairs covenants not to compete to appointment of Veterans Health Administration personnel.
Sec. 711. Recruitment of physicians on a contingent basis prior to completion of training requirements.
Sec. 712. Authority for Secretary of Veterans Affairs to award grants to States to improve outreach to veterans.
Sec. 713. Study and report on herbicide agent exposure in Panama Canal Zone.
Sec. 714. Budget information for alternatives to burn pits.
Sec. 715. Authorization of appropriations for expansion of claims automation.
Sec. 716. Burn pit registry updates.
Sec. 717. Burn pit transparency.

TITLE I—EXPANSION OF HEALTH CARE ELIGIBILITY

Subtitle A—Toxic-Exposed Veterans

SEC. 101. SHORT TITLE.

This title may be cited as the "Conceding Our Veterans' Exposures Now And Necessitating Training Act" or the "COVENANT Act".

SEC. 102. DEFINITIONS RELATING TO TOXIC-EXPOSED VETERANS.

(a) In General.—Section 1710(a)(2)(F) is amended by striking "who was exposed to a toxic substance, radiation, or other conditions, as provided in subsection (e)" and inserting "in accordance with subsection (e), who is a toxic-exposed veteran".

(b) Definitions Of Toxic Exposure And Toxic-Exposed Veteran.—Section 101 is amended by adding at the end the following new paragraphs:

"(37) The term 'toxic exposure' includes the following:

"(A) A toxic exposure risk activity, as defined in section 1710(e)(4) of this title.

"(B) An exposure to a substance, chemical, or airborne hazard identified in the list under section 1119(b)(2) of this title.

"(38) The term 'toxic-exposed veteran' means a veteran described in section 1710(e)(1) of this title.".

(c) Definition Of Toxic Exposure Risk Activity.—Section 1710(e)(4) is amended by adding at the end the following new subparagraph:

"(C) The term 'toxic exposure risk activity' means any activity—

"(i) that requires a corresponding entry in an exposure tracking record system (as defined in section 1119(c) of this title) for the veteran who carried out the activity; or

"(ii) that the Secretary determines qualifies for purposes of this subsection when taking into account what is reasonably prudent to protect the health of veterans.".

SEC. 103. EXPANSION OF HEALTH CARE FOR SPECIFIC CATEGORIES OF TOXIC-EXPOSED VETERANS AND VETERANS SUPPORTING CERTAIN OVERSEAS CONTINGENCY OPERATIONS.

(a) In General.—

(1) EXPANSION.—Subsection (e) of section 1710, as amended by section 102(c), is further amended—

(A) in paragraph (1), by adding at the end the following new subparagraphs:

"(G) Beginning not later than the applicable date specified in paragraph (6), and subject to paragraph (2), a veteran who participated in a toxic exposure risk activity while serving on active duty, active duty for training, or inactive duty training is eligible for hospital care (including mental health services and counseling), medical services, and nursing home care under subsection (a)(2)(F) for any illness.

"(H) Beginning not later than the applicable date specified in paragraph (6), and subject to paragraph (2), a covered veteran (as defined in section 1119(c) of this title) is eligible for hospital care (including mental health services and counseling), medical services, and nursing home care under subsection (a)(2)(F) for any illness.

"(I) (i) Beginning not later than the applicable date specified in paragraph (6), and subject to paragraph (2), a veteran who deployed in support of a contingency operation specified in clause (ii) is eligible for hospital care (including mental health services and counseling), medical services, and nursing home care under subsection (a)(2)(F) for any illness.

"(ii) A contingency operation specified in this clause is any of the following:

"(I) Operation Enduring Freedom.

"(II) Operation Freedom's Sentinel.

"(III) Operation Iraqi Freedom.

"(IV) Operation New Dawn.

"(V) Operation Inherent Resolve.

"(VI) Resolute Support Mission."; and

(B) in paragraph (2)(B)—

(i) by striking "or (F)" and inserting "(F), (G), (H), or (I)"; and

(ii) by striking "service or testing" and inserting "service, testing, or activity".

(2) PHASE IN.—Such subsection is further amended by adding at the end the following new paragraph:

"(6) (A) The Secretary shall determine the dates in subparagraphs (G), (H), and (I) of paragraph (1) as follows:

"(i) October 1, 2024, with respect to a veteran described in such subparagraph (G) or (H) who was discharged or released from the active military, naval, air, or space service during the period beginning on August 2, 1990, and ending on September 11, 2001.

"(ii) October 1, 2026, with respect to a veteran described in such subparagraph (G) or (H) who was discharged or released from the active military, naval, air, or space service during the period beginning on September 12, 2001, and ending on December 31, 2006.

"(iii) October 1, 2028, with respect to a veteran described in such subparagraph (G) or (H) who was discharged or released from the active military, naval, air, or space service during the period beginning on January 1, 2007, and ending on December 31, 2012.

"(iv) October 1, 2030, with respect to a veteran described in such subparagraph (G) or (H) who was discharged or released from the active military, naval, air, or space service during the period beginning on January 1, 2013, and ending on December 31, 2018.

"(v) October 1, 2032, with respect to a veteran described in such subparagraph (I).

"(B) The Secretary may modify a date specified in subparagraph (A) to an earlier date, as the Secretary determines appropriate based on the number of veterans receiving hospital care, medical services, and nursing home care under subparagraphs (G), (H), and (I) of paragraph (1) and the resources available to the Secretary. If the Secretary determines to so modify a date, the Secretary shall—

"(i) notify the Committees on Veterans' Affairs of the House of Representatives and the Senate of the proposed modification; and

"(ii) publish such modified date in the Federal Register.".

(b) OUTREACH PLANS.—With respect to each of clauses (i) through (v) of section 1710(e)(6)(A) of title 38, United States Code (as added by subsection (a)(2)), not later than 180 days prior to the date specified in the clause (including a date modified pursuant to such section), the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a plan to conduct outreach to the veterans referred to in the clause to notify such veterans of their eligibility for hospital care, medical services, or nursing home care under subparagraph (G), (H), or (I), of section 1710(e)(1) of such title, as the case may be.

SEC. 104. ASSESSMENTS OF IMPLEMENTATION AND OPERATION.

(a) INITIAL RESOURCE ASSESSMENT AND REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(1) complete an assessment to determine—

(A) the personnel and material resources necessary to implement section 103 (including the amendments made by such section); and

(B) the total number of covered veterans, as such term is defined in section 1119(c) of title 38, United States Code (as added by section 302), who receive hospital care or medical services furnished by the Secretary under chapter 17 of such title, disaggregated by priority group specified in section 1705(a) of such title; and

(2) submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report containing the findings of the assessment completed under paragraph (1), including a specific determination as to whether the Department has the personnel and material resources necessary to implement section 103.

(b) INFORMATION SYSTEMS.—Not later than October 1, 2024, the Secretary shall establish information systems to assess the implementation of section 103, including the amendments made by such section, and use the results of assessments under such systems to inform the reports under subsection (c).

(c) ANNUAL REPORTS.—

(1) REPORTS.—Not later than October 1, 2025, and on an annual basis thereafter until October 1, 2033, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the following:

(A) The effect of the implementation of, and the provision and management of care under, section 103, (including the amendments made by such section) on the demand by veterans described in subparagraphs (G), (H), and (I) of section 1710(e)(1) of title 38, United States Code (as added by such section 103) for health care services furnished by the Secretary.

(B) Any differing patterns of demand for health care services by such veterans, disaggregated by factors such as the relative distance of the veteran from medical facilities of the Department and whether the veteran had previously received hospital care or medical services furnished by the Secretary under chapter 17 of such title.

(C) The extent to which the Secretary has met such demand.

(D) Any changes, during the year covered by the report, in the delivery patterns of health care furnished by the Secretary under chapter 17 of such title, and the fiscal impact of such changes.

(2) MATTERS.—Each report under paragraph (1) shall include, with respect to the year covered by the report, detailed information on the following:

(A) The total number of veterans enrolled in the patient enrollment system who, during such year, received hospital care or medical services furnished by the Secretary under chapter 17 of title 38, United States Code.

(B) Of the veterans specified in subparagraph (A), the number of such veterans who, during the preceding three fiscal years, had not received such care or services.

(C) With respect to the veterans specified in subparagraph (B), the cost of providing health care to such veterans during the year covered by the report, shown in total and disaggregated by—

(i) the level of care; and

(ii) whether the care was provided through the Veterans Community Care Program.

(D) With respect to the number of veterans described in subparagraphs (G), (H), and (I) of section 1710(e)(1) of title 38, United States Code (as added by section 103), the following (shown in total and disaggregated by medical facility of the Department, as applicable):

(i) The number of such veterans who, during the year covered by the report, enrolled in the patient enrollment system.

(ii) The number of such veterans who applied for, but were denied, such enrollment.

(iii) The number of such veterans who were denied hospital care or a medical service furnished by the Secretary that was considered to be medically necessary but not of an emergency nature.

(E) The numbers and characteristics of, and the type and extent of health care furnished by the Secretary to, veterans enrolled in the patient enrollment system (shown in total and disaggregated by medical facility of the Department).

(F) The numbers and characteristics of, and the type and extent of health care furnished by the Secretary to, veterans not enrolled in the patient enrollment system

(disaggregated by each class of eligibility for care under section 1710 of title 38, United States Code, and further shown as a total per class and disaggregated by medical facility of the Department).

(G) The specific fiscal impact (shown in total and disaggregated by geographic health care delivery areas) of changes in the delivery patterns of health care furnished by the Secretary under chapter 17 of such title as a result of the implementation of section 103 (including the amendments made by such section).

(d) DEFINITIONS.—In this section:

(1) The term "patient enrollment system" means the patient enrollment system of the Department of Veterans Affairs established and operated under section 1705 of title 38, United States Code.

(2) The term "Veterans Community Care Program" means the program established under section 1703 of title 38, United States Code.

SEC. 105. REVISION OF BREAST CANCER MAMMOGRAPHY POLICY OF DEPARTMENT OF VETERANS AFFAIRS TO PROVIDE MAMMOGRAPHY SCREENING FOR VETERANS WHO SERVED IN LOCATIONS ASSOCIATED WITH TOXIC EXPOSURE.

(a) IN GENERAL.—Section 7322 of title 38, United States Code, is amended—

(1) in subsection (a), by striking "The" and inserting "IN GENERAL.—The";

(2) in subsection (b)—

(A) by striking "The" and inserting "STANDARDS FOR SCREENING.—The"; and

(B) in paragraph (2)(B), by inserting "a record of service in a location and during a period specified in subsection (d)," after "risk factors,"; and

(3) by adding at the end the following new subsections:

"(c) ELIGIBILITY FOR SCREENING FOR VETERANS EXPOSED TO TOXIC SUBSTANCES.—The Under Secretary for Health shall ensure that, under the policy developed under subsection (a), any veteran who, during active military, naval, or air service, was deployed in support of a contingency operation in a location and during a period specified in subsection (d), is eligible for a mammography screening by a health care provider of the Department.

"(d) LOCATIONS AND PERIODS SPECIFIED.— (1) The locations and periods specified in this subsection are the following:

"(A) Iraq during following periods:

"(i) The period beginning on August 2, 1990, and ending on February 28, 1991.

"(ii) The period beginning on March 19, 2003, and ending on such date as the Secretary determines burn pits are no longer used in Iraq.

"(B) The Southwest Asia theater of operations, other than Iraq, during the period beginning on August 2, 1990, and ending on such date as the Secretary determines burn pits are no longer used in such location, including the following locations:

"(i) Kuwait.

"(ii) Saudi Arabia.

"(iii) Oman.

"(iv) Qatar.

"(C) Afghanistan during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Afghanistan.

"(D) Djibouti during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Djibouti.

"(E) Syria during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Syria.

"(F) Jordan during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Jordan.

"(G) Egypt during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Egypt.

"(H) Lebanon during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Lebanon.

"(I) Yemen during the period beginning on September 11, 2001, and ending on such date as the Secretary determines burn pits are no longer used in Yemen.

"(J) Such other locations and corresponding periods as set forth by the Airborne Hazards and Open Burn Pit Registry established under section 201 of the Dignified Burial and Other Veterans' Benefits Improvement Act of 2012 (Public Law 112–260; 38 U.S.C. 527 note).

"(K) Such other locations and corresponding periods as the Secretary, in collaboration with the Secretary of Defense, may determine appropriate in a report submitted under paragraph (2).

"(2) Not later than two years after the date of the enactment of the Supporting Expanded Review for Veterans In Combat Environments Act of 2021, and not less frequently than once every two years thereafter, the Secretary of Veterans Affairs, in collaboration with the Secretary of Defense, shall submit to Congress a report specifying other locations and corresponding periods for purposes of paragraph (1)(K).

"(3) A location under this subsection shall not include any body of water around or any airspace above such location.

"(4) In this subsection, the term 'burn pit' means an area of land that is used for disposal of solid waste by burning in the outdoor air.".

(b) Report On Breast Cancer Rates For Veterans Deployed To Certain Areas.—Not later than two years after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report that compares the rates of breast cancer among members of the Armed Forces deployed to the locations and during the periods specified in section 7322(d) of title 38, United States Code, as added by subsection (a), as compared to members of the Armed Forces who were not deployed to those locations during those periods and to the civilian population.

Subtitle B—Certain Veterans Of Combat Service And Other Matters

SEC. 111. EXPANSION OF PERIOD OF ELIGIBILITY FOR HEALTH CARE FOR CERTAIN VETERANS OF COMBAT SERVICE.

(a) EXPANDED PERIOD.—Section 1710(e)(3) is amended—

(1) in subparagraph (A)—

(A) by striking "January 27, 2003" and inserting "September 11, 2001"; and

(B) by striking "five-year period" and inserting "10-year period";

(2) by amending subparagraph (B) to read as follows:

"(B) With respect to a veteran described in paragraph (1)(D) who was discharged or released from the active military, naval, air, or space service after September 11, 2001, and before October 1, 2013, but did not enroll to receive such hospital care, medical services, or nursing home care under such paragraph pursuant to subparagraph (A) before October 1, 2022, the one-year period beginning on October 1, 2022."; and

(3) by striking subparagraph (C).

(b) CLARIFICATION OF COVERAGE.—Section 1710(e)(1)(D) is amended by inserting after "Persian Gulf War" the following: "(including any veteran who, in connection with service during such period, received the Armed Forces Expeditionary Medal, Service Specific Expeditionary Medal, Combat Era Specific Expeditionary Medal, Campaign Specific Medal, or any other combat theater award established by a Federal statute or an Executive order)".

(c) OUTREACH PLAN.—Not later than December 1, 2022, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a plan to conduct outreach to veterans described in subparagraph (B) of section 1710(e)(3) of title 38, United States Code, as amended by subsection (a)(2), to notify such veterans of their eligibility for hospital care, medical services, or nursing home care pursuant to such subparagraph.

(d) REPORT ON ENROLLMENTS.—Not later than January 30, 2024, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report identifying, with respect to the one-year period beginning on October 1, 2022, the number of veterans described in section 1710(e)(3)(B) of title 38, United States Code, as amended by subsection (a)(2), who, during such period, enrolled in the patient enrollment system of the Department of Veterans Affairs established and operated under section 1705 of such title.

(e) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect on October 1, 2022.

SEC. 112. AUTHORIZATION PERIOD FOR EMERGENCY TREATMENT IN NON-DEPARTMENT OF VETERANS AFFAIRS MEDICAL FACILITIES.

Section 1703(a)(3) of title 38, United States Code, is amended—

(1) by striking "A covered veteran" and inserting "(A) Except as provided by subparagraph (B), a covered veteran"; and

(2) by adding at the end the following new subparagraph:

"(B) In the case of an emergency which existed at the time of admission of a covered veteran to a health care provider, the Secretary shall deem the care or services received by the

veteran during such admission to be authorized under subparagraph (A) if the covered veteran (or an individual acting on behalf of the covered veteran) makes an application for such authorization during the period following such admission that the Secretary determines appropriate for purposes of this paragraph, except such period may not be less than 96 hours.".

TITLE II—TOXIC EXPOSURE PRESUMPTION PROCESS

SEC. 201. SHORT TITLE.

This subtitle may be cited as the "Fairly Assessing Service-related Toxic Exposure Residuals Presumptions Act" or the "FASTER Presumptions Act".

SEC. 202. IMPROVEMENTS TO ABILITY OF DEPARTMENT OF VETERANS AFFAIRS TO ESTABLISH PRESUMPTIONS OF SERVICE CONNECTION BASED ON TOXIC EXPOSURE.

(a) ADVISORY COMMITTEES, PANELS, AND BOARDS.—Chapter 11 is amended by adding at the end the following new subchapter:

"SUBCHAPTER VII—DETERMINATIONS RELATING TO PRESUMPTIONS OF SERVICE CONNECTION BASED ON TOXIC EXPOSURE

"§1171. Procedures to determine presumptions of service connection based on toxic exposure; definitions

"(a) PROCEDURES.—The Secretary shall determine whether to establish, or to remove, presumptions of service connection based on toxic exposure pursuant to this subchapter, whereby—

"(1) the Formal Advisory Committee on Toxic Exposure under section 1172 of this title—

"(A) provides advice to the Secretary on toxic-exposed veterans and cases in which veterans who, during active military, naval, air, or space service, may have experienced a toxic exposure or their dependents may have experienced a toxic exposure while the veterans were serving in the active military, naval, air, or space service;

"(B) provides to the Secretary recommendations on corrections needed in the Individual Longitudinal Exposure Record, or successor system, to better reflect veterans and dependents described in subparagraph (A); and

"(C) provides to the Secretary recommendations regarding which cases of possible toxic exposure should be reviewed; and

"(2) the Secretary provides for formal evaluations of such recommendations under section 1173 of this title; and

"(3) the Secretary issues regulations under section 1174 of this title.

"(b) ILLNESS DEFINED.—In this subchapter, the term 'illness' includes a disease or other condition affecting the health of an individual, including mental and physical health.

"§1172. Formal Advisory Committee on Toxic Exposure

"(a) ESTABLISHMENT.—(1) There is in the Veterans Health Administration of the Department the Formal Advisory Committee on Toxic Exposure (in this section referred to as the 'Committee').

"(2) (A) The Committee shall be composed of nine members appointed as follows:

"(i) Five members shall be appointed by the Secretary.

"(ii) One member shall be appointed by the Speaker of the House of Representatives.

"(iii) One member shall be appointed by the minority leader of the House of Representatives.

"(iv) One member shall be appointed by the majority leader of the Senate.

"(v) One member shall be appointed by the minority leader of the Senate.

"(B) The members appointed under subparagraph (A) shall meet the following criteria:

"(i) Not more than three members shall be appointed from among individuals who are officials or employees of the Veterans Benefits Administration or the Veterans Health Administration.

"(ii) At least one member shall be appointed from among individuals who are officials or employees of other departments or agencies of the Federal Government, including the Department of Defense and the Agency of Toxic Substances and Disease Registry of the Centers for Disease Control and Prevention.

"(iii) At least two members shall represent an organization recognized by the Secretary for the representation of veterans under section 5902 of this title.

"(iv) At least one member shall be appointed from among individuals in the private sector, State or local government, or academia, who are experts in toxicology and epidemiology.

"(3) The Secretary shall determine the pay and allowances of the members of the Committee, including with respect to any additional pay and allowances for members who are officials or employees of the Federal Government.

"(4) (A) Except as provided by subparagraph (B), each member of the Committee shall be appointed for a two-year term, and may serve not more than three successive terms.

"(B) With respect to the five members who are initially appointed by the Secretary under subparagraph (A)(i), the Secretary shall determine the length of the term of each such member in a manner that ensures the expiration of the terms on a staggered basis.

"(5) A vacancy in the Committee shall be filled in the manner in which the original appointment was made.

"(b) CONSULTATION.—The Secretary may consult with, and seek the advice of, the Committee with respect to cases in which veterans who, during active military, naval, air, or space service, are suspected of having experienced a toxic exposure or dependents of veterans who may have experienced a toxic exposure during such service.

"(c) ASSESSMENTS.— (1) The Committee shall assess cases of the toxic exposure of veterans and their dependents that occurred during active military, naval, air, or space service, including by conducting ongoing surveillance and reviewing such exposure described in scientific literature, media reports, information from veterans, and information from Congress.

"(2) The assessments under paragraph (1) shall cover suspected and known toxic exposures occurring during active military, naval, air, or space service, including by identifying and evaluating new and emerging toxic exposures that are not recognized under existing presumptions of service connection.

"(3) The Committee may conduct an assessment under paragraph (1) in response to comments by a person described in subsection (e)(2), by a majority vote of the members of the Committee.

"(4) The Committee shall on a periodic basis assess the Individual Longitudinal Exposure Record, or successor system, to ensure the accuracy of data collected.

"(d) RESEARCH RECOMMENDATIONS.—(1) Following an assessment of a case of the toxic exposure of veterans or their dependents that occurred during active military, naval, air, or space service under subsection (c), the Committee may develop a recommendation for formal evaluation under section 1173 of this title to conduct a review of the health effects related to the case of exposure if the Committee determines that the research may change the current understanding of the relationship between an exposure to an environmental hazard and adverse health outcomes in humans.

"(2) Upon receipt of evidence suggesting that previous findings regarding the periods and locations of exposure covered by an existing presumption of service connection are no longer supported, the Committee may nominate such evidence for formal evaluation under section 1173 of this title to modify the periods and locations.

"(e) INPUT.—(1) Not less than quarterly, the Committee shall provide an opportunity for persons described in paragraph (2) to present written or oral comments to the Committee.

"(2) The persons described in this paragraph are persons who may be affected by the actions of the Committee, including—

"(A) veterans, the families of veterans, veterans service organizations and representatives, researchers, and other members of the general public; and

"(B) departments and agencies of the Federal Government.

"(f) REPORTS BY THE COMMITTEE.—Not less frequently than once each year, the Committee shall submit to the Secretary and the Committees on Veterans' Affairs of the Senate and the House of Representatives, and make publicly available, a report on—

"(1) recommendations for research under subsection (d), if any; and

"(2) recommendations for such legislative or administrative action as the Committee considers necessary for the Committee to be more effective in carrying out the requirements of this section.

"(g) RESPONSES BY SECRETARY.—In response to each report submitted under subsection (f), the Secretary shall submit to the Secretary and the Committees on Veterans' Affairs of the Senate and the House of Representatives, and make publicly available, a report on —

"(1) the findings and opinions of the Secretary with respect to the report most recently submitted under subsection (f); and

"(2) whether the Secretary will conduct research recommended under subsection (f) included in the report, and if not, an explanation of why, including citations and sources.

"(h) NONAPPLICATION OF SUNSET REQUIREMENTS.—Section 14 of the Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Committee.

"§1173. Formal evaluation of recommendations

"(a) FORMAL EVALUATION.—The Secretary shall establish a process to conduct a formal evaluation with respect to each recommendation made by the Formal Advisory Committee on Toxic Exposure under section 1172 of this title—

"(1) to conduct research regarding the health effects related to a case of toxic exposure; or

"(2) to evaluate evidence regarding the periods and locations of exposure covered by an existing presumption of service connection.

"(b) EVIDENCE, DATA, AND FACTORS.—The Secretary shall ensure that each formal evaluation under paragraph (1) covers the following:

"(1) Scientific evidence, based on the review of available scientific literature, including human, toxicological, animal, and methodological studies, and other factors.

"(2) Claims data, based on the review of claim rate, grant rate, and service connection prevalence, and other factors.

"(3) Other factors the Secretary determines appropriate, such as—

"(A) the level of disability and mortality caused by the health effects related to the case of toxic exposure being evaluated;

"(B) the level of assistance required to remain in the community because of such health effects;

"(C) the quantity and quality of the information available and reviewed;

"(D) the feasibility of and period for generating relevant information and evidence;

"(E) whether such health effects are combat- or deployment-related; and

"(F) the ubiquity or rarity of the health effects.

"(c) CONDUCT OF EVALUATIONS.— (1) The Secretary shall ensure that each formal evaluation under subsection (a)—

"(A) reviews scientific evidence in a manner that—

"(i) conforms to principles of scientific and data integrity;

"(ii) is free from suppression or distortion of scientific or technological findings, data, information, conclusions, or technical results; and

"(B) (i) evaluates the likelihood that a positive association exists between an illness and a toxic exposure while serving in the active military, naval, air, or space service; and

"(ii) assesses the toxic exposures and illnesses and determines whether the evidence supports a finding of a positive association between the toxic exposure and the illness.

"(2) In carrying out paragraph (1)(B)(ii), a formal evaluation under subsection (a) shall include reviewing all relevant data to determine the strength of evidence for a positive association based on the following four categories:

"(A) The 'sufficient' category, where the evidence is sufficient to conclude that a positive association exists.

"(B) The 'equipoise and above' category, where the evidence is sufficient to conclude that a positive association is at least as likely as not, but not sufficient to conclude that a positive association exists.

"(C) The 'below equipoise' category, where the evidence is not sufficient to conclude that a positive association is at least as likely as not, or is not sufficient to make a scientifically informed judgment.

"(D) The 'against' category, where the evidence suggests the lack of a positive association.

"(d) RECOMMENDATION FOR RULEMAKING.—Not later than 120 days after the date on which a formal evaluation is commenced, the element of the Department that conducts the evaluation shall submit to the Secretary a recommendation with respect to establishing a presumption of service connection for the toxic exposure and illness, or modifying an existing presumption of service connection, covered by the evaluation.

"§1174. Regulations regarding presumptions of service connection based on toxic exposure

"(a) ACTION UPON RECOMMENDATION.—Not later than 160 days after the date on which the Secretary receives a recommendation to establish or modify a presumption of service connection under section 1173 of this title—

"(1) if the Secretary determines that the presumption, or modification, is warranted, the Secretary shall commence issuing regulations in accordance with the provisions of subchapter II of chapter 5 of title 5 (commonly referred to as the Administrative Procedures Act) setting forth the presumption or commence revising regulations to carry out such modification; or

"(2) if the Secretary determines that the presumption, or modification, is not warranted, the Secretary shall publish in the Federal Register a notice of the determination, including the reasons supporting the determination.

"(b) REMOVAL OF PRESUMPTION.—(1) The Secretary may issue regulations to remove an illness from a presumption of service connection previously established pursuant to a regulation issued under subsection (a).

"(2) Whenever an illness is removed from regulations pursuant to paragraph (1), or the periods and locations of exposure covered by a presumption of service connection are modified under subsection (a)—

"(A) a veteran who was awarded compensation for such illness on the basis of the presumption provided under such regulations before the effective date of the removal or modification shall continue to be entitled to receive compensation on that basis; and

"(B) a survivor of a veteran who was awarded dependency and indemnity compensation for the death of a veteran resulting from such illness on the basis of such presumption shall continue to be entitled to receive dependency and indemnity compensation on such basis.

"§1175. Authority to modify process; congressional oversight

"(a) AUTHORITY.—(1) The Secretary may modify the process under which the Secretary conducts formal evaluations under section 1173 of this title and issues regulations under section 1174 if—

"(A) such evaluations cover the evidence, data, and factors required by subsection (b) of such section 1173; and

"(B) a period of 180 days has elapsed following the date on which the Secretary submits the notice under paragraph (2) regarding the modification.

"(2) If the Secretary proposes to modify the process under which the Secretary conducts formal evaluations under section 1173 of this title or issues regulations under section 1174, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a notice of the proposed modifications containing the following:

"(A) A description of the proposed modifications.

"(B) A description of any exceptions to the requirements of such sections that are proposed because of limited available scientific evidence, and a description of how such evaluations will be conducted.

"(b) REPORTS AND BRIEFINGS.—(1) (A) Not later than two years after the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the implementation of, and recommendations for, this subchapter.

"(B) The Secretary shall develop the report under subparagraph (A) in consultation with organizations recognized by the Secretary for the representation of veterans under section 5902 of this title and any other entity the Secretary determines appropriate.

"(2) On a quarterly basis during the two-year period beginning on the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021, the Secretary shall provide to the Committees on Veterans' Affairs of the House of Representatives and the Senate a briefing on the implementation of this subchapter.

"(c) INDEPENDENT REVIEW.—The Secretary shall seek to enter into an agreement with a nongovernmental entity or a federally funded research and development center to conduct a review of the implementation of this subchapter. Not later than 540 days after the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report containing such review.".

(b) CONFORMING AMENDMENTS.—Chapter 11 is amended—

(1) in section 1116—

(A) by striking subsections (b), (c), (d), and (e);

(B) by inserting after subsection (a) the following new subsection (b):

"(b) The Secretary shall ensure that any determination made on or after the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021 regarding a presumption of service connection based on exposure to an herbicide agent under this section is made pursuant to subchapter VII of this chapter, including with respect to assessing reports received by the Secretary from the National Academy of Sciences under section 3 of the Agent Orange Act of 1991 (Public Law 102–4)."; and

(C) by redesignating subsection (f) as subsection (c);

(2) in section 1116B(b)(2)(A), by inserting "pursuant to subchapter VII of this chapter," before "the Secretary determines"; and

(3) in section 1118—

(A) by striking subsections (b) through (e); and

(B) by inserting after subsection (a) the following new subsection (b):

"(b) The Secretary shall ensure that any determination made on or after the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021 regarding a presumption of service connection based on a toxic exposure under this section is made pursuant to subchapter VII of this chapter.".

(c) RULE OF CONSTRUCTION.—Nothing in section 1172(a)(2)(A) of title 38, United States Code, as added by subsection (a), shall be construed so as to require the advice and consent of the Senate in the appointment of members of the Formal Advisory Committee on Toxic Exposure.

SEC. 203. REEVALUATION OF CLAIMS FOR COMPENSATION INVOLVING PRESUMPTIONS OF SERVICE CONNECTION.

(a) IN GENERAL.—Subchapter VI of chapter 11 is amended by adding at the end the following new section:

"§1167. Reevaluation of compensation determinations pursuant to changes in presumptions of service connection

"(a) REEVALUATION.—Whenever a law, including through a regulation or Federal court decision, establishes or modifies a presumption of service connection, the Secretary shall—

"(1) identify all claims for compensation under this chapter that—

"(A) were submitted to the Secretary;

"(B) were evaluated and denied by the Secretary before the date on which such provision of law went into effect; and

"(C) might have been evaluated differently had the establishment or modification been applicable to the claim;

"(2) allow for the reevaluation of such claims at the election of the veteran; and

"(3) notwithstanding section 5110 of this title, with respect to claims approved pursuant to such reevaluation, provide compensation under this chapter effective as if the establishment or modification of the presumption of service connection had been in effect on the date of the submission of the original claim described in paragraph (1).

"(b) OUTREACH.—The Secretary shall conduct outreach to inform relevant veterans that they may elect to have a claim be reevaluated in light of the establishment or modification of a presumption of service connection described in subsection (a). Such outreach shall include the following:

"(1) The Secretary shall publish on the internet website of the Department a notice that such veterans may elect to have a claim so reevaluated.

"(2) The Secretary shall notify, in writing or by electronic means, veterans service organizations of the ability of such veterans to elect to have a claim so reevaluated.".

(b) APPLICATION.—Section 1167 of title 38, United States Code, as added by subsection (a), shall apply with respect to presumptions of service connection established or modified on or after the date of the enactment of this Act, including pursuant to amendments made by this Act.

TITLE III—IMPROVING THE ESTABLISHMENT OF SERVICE CONNECTION PROCESS FOR TOXIC-EXPOSED VETERANS

SEC. 301. SHORT TITLE.

This title may be cited as the "Veterans Burn Pits Exposure Recognition Act".

SEC. 302. PRESUMPTIONS OF TOXIC EXPOSURE.

Subchapter II of chapter 11 is amended by adding at the end the following new section:

"§1119. Presumptions of toxic exposure

"(a) CONSIDERATION OF RECORDS.—If a veteran submits to the Secretary a claim for compensation for a service-connected disability under section 1110 of this title with evidence of a disability and a toxic exposure that occurred during active military, naval, air, or space service, the Secretary may, in adjudicating such claim, consider—

"(1) any record of the veteran in an exposure tracking record system; and

"(2) if no record of the veteran in an exposure tracking record system indicates that the veteran was subject to a toxic exposure during active military, naval, air, or space service, the totality of the circumstances of the service of the veteran.

"(b) PRESUMPTION OF SPECIFIC TOXIC EXPOSURE FOR MEMBERS WHO SERVED IN CERTAIN LOCATIONS.—(1) The Secretary shall, for purposes of section 1110 and chapter 17 of this title, presume that any covered veteran was exposed to the substances, chemicals, and airborne hazards identified in the list under paragraph (2) during the service of the covered veteran specified in subsection (c)(1), unless there is affirmative evidence to establish that the covered veteran was not exposed to any such substances, chemicals, or hazards in connection with such service.

"(2) The Secretary shall establish and maintain a list that contains an identification of one or more such substances, chemicals, and airborne hazards as the Secretary, in collaboration with the Secretary of Defense, may determine appropriate for purposes of this section.

"(3) Beginning not later than two years after the date of the enactment of the Honoring our Promise to Address Comprehensive Toxics Act of 2021, and not less frequently than once every two years thereafter, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report identifying any additions or removals to the list under paragraph (2) during the period covered by the report.

"(c) DEFINITIONS.—In this section:

"(1) The term 'covered veteran' means any veteran who—

"(A) on or after August 2, 1990, performed active military, naval, air, or space service while assigned to a duty station in—

"(i) Bahrain;

"(ii) Iraq;

"(iii) Kuwait;

"(iv) Oman;

"(v) Qatar;

"(vi) Saudi Arabia;

"(vii) Somalia; or

"(viii) United Arab Emirates; or

"(B) on or after September 11, 2001, performed active military, naval, air, or space service while assigned to a duty station in—

"(i) Afghanistan;

"(ii) Djibouti;

"(iii) Egypt;

"(iv) Jordan;

"(v) Lebanon;

"(vi) Syria;

"(vii) Yemen;

"(viii) Uzbekistan;

"(ix) the Philippines; or

"(x) any other country determined relevant by the Secretary.

"(2) The term 'exposure tracking record system'—

"(A) means any system, program, or pilot program used by the Secretary of Veterans Affairs or the Secretary of Defense to track how veterans or members of the Armed Forces have been exposed to various occupational or environmental hazards; and

"(B) includes the Individual Longitudinal Exposure Record, or successor system.

"(3) The term 'toxic exposure risk activity' has the meaning given such term in section 1710(e)(4) of this title.".

SEC. 303. MEDICAL NEXUS EXAMINATIONS FOR TOXIC EXPOSURE RISK ACTIVITIES.

Subchapter VI of chapter 11, as amended by section 203, is further amended by adding at the end the following new section:

"§1168. Medical nexus examinations for toxic exposure risk activities

"(a) MEDICAL EXAMINATIONS AND MEDICAL OPINIONS.—(1) Except as provided in subsection (b), if a veteran submits to the Secretary a claim for compensation for a service-connected disability under section 1110 of this title with evidence of a disability and evidence of participation in a toxic exposure risk activity during active military, naval, air, or space service, and such evidence is not sufficient to establish a service connection for the disability, the Secretary shall—

"(A) provide the veteran with a medical examination under section 5103A(d) of this title; and

"(B) obtain a medical opinion (to be requested by the Secretary in connection with the medical examination under subparagraph (A)) as to whether it is at least as likely as not that there is a nexus between the disability and the toxic exposure risk activity.

"(2) When providing the Secretary with a medical opinion under paragraph (1)(B) for a veteran, the health care provider shall consider—

"(A) the total potential exposure through all applicable military deployments of the veteran; and

"(B) the synergistic, combined effect of all toxic exposure risk activities of the veteran.

"(3) The requirement under paragraph (2)(B) shall not be construed as requiring a health care provider to consider the synergistic, combined effect of each of the substances, chemicals, and airborne hazards identified in the list under section 1119(b)(2) of this title.

"(b) EXCEPTION.—Subsection (a) shall not apply if the Secretary determines there is no indication of an association between the disability claimed by the veteran and the toxic exposure risk activity for which the veteran submitted evidence.

"(c) TOXIC EXPOSURE RISK ACTIVITY DEFINED.—In this section, the term 'toxic exposure risk activity' has the meaning given that term in section 1710(e)(4) of this title.".

TITLE IV—PRESUMPTIONS OF SERVICE CONNECTION

SEC. 401. TREATMENT OF VETERANS WHO PARTICIPATED IN CLEANUP OF ENEWETAK ATOLL AS RADIATION-EXPOSED VETERANS FOR PURPOSES OF PRESUMPTION OF SERVICE CONNECTION OF CERTAIN DISABILITIES BY DEPARTMENT OF VETERANS AFFAIRS.

(a) SHORT TITLE.—This section may be cited as the "Mark Takai Atomic Veterans Healthcare Parity Act".

(b) ENEWETAK ATOLL.—Section 1112(c)(3)(B) is amended by adding at the end the following new clause:

"(v) Cleanup of Enewetak Atoll during the period beginning on January 1, 1977, and ending on December 31, 1980.".

SEC. 402. TREATMENT OF VETERANS WHO PARTICIPATED IN NUCLEAR RESPONSE NEAR PALOMARES, SPAIN, OR THULE, GREENLAND, AS RADIATION-EXPOSED VETERANS FOR PURPOSES OF PRESUMPTION OF SERVICE CONNECTION OF CERTAIN DISABILITIES BY DEPARTMENT OF VETERANS AFFAIRS.

(a) SHORT TITLE.—This section may be cited as the "Palomares or Thule Veterans Act"

(b) PALOMARES OR THULE.—Section 1112(c)(3)(B), as amended by section 401, is further amended by adding at the end the following new clauses:

"(vi) Onsite participation in the response effort following the collision of a United States Air Force B–52 bomber and refueling plane that caused the release of four thermonuclear weapons in the vicinity of Palomares, Spain, during the period beginning January 17, 1966, and ending March 31, 1967.

"(vii) Onsite participation in the response effort following the on-board fire and crash of a United States Air Force B–52 bomber that caused the release of four thermonuclear weapons in the vicinity of Thule Air Force Base, Greenland, during the period beginning January 21, 1968, and ending September 25, 1968.".

SEC. 403. PRESUMPTIONS OF SERVICE CONNECTION FOR DISEASES ASSOCIATED WITH EXPOSURES TO CERTAIN HERBICIDE AGENTS FOR VETERANS WHO SERVED IN CERTAIN LOCATIONS.

(a) SHORT TITLE.—This section may be cited as the "Veterans Agent Orange Exposure Equity Act".

(b) IN GENERAL.—Section 1116, as amended by section 202, is further amended—

(1) by striking ", during active military, naval, air, or space service, served in the Republic of Vietnam during the period beginning on January 9, 1962, and ending on May 7, 1975" each place it appears and inserting "performed covered service";

(2) by striking "performed active military, naval, air, or space service in the Republic of Vietnam during the period beginning on January 9, 1962, and ending on May 7, 1975" each place it appears and inserting "performed covered service"; and

(3) by adding at the end the following new subsection:

"(d) In this section, the term 'covered service' means active military, naval, air, or space service—

"(1) performed in the Republic of Vietnam during the period beginning on January 9, 1962, and ending on May 7, 1975;

"(2) performed in Thailand at any United States or Royal Thai base during the period beginning on January 9, 1962, and ending on June 30, 1976, without regard to where on the base the veteran was located or what military job specialty the veteran performed;

"(3) performed in Laos during the period beginning on December 1, 1965, and ending on September 30, 1969;

"(4) performed in Cambodia at Mimot or Krek, Kampong Cham Province during the period beginning on April 16, 1969, and ending on April 30, 1969; or

"(5) performed on Guam or American Samoa, or in the territorial waters thereof, during the period beginning on January 9, 1962, and ending on July 31, 1980, or served on Johnston Atoll or on a ship that called at Johnston Atoll during the period beginning on January 1, 1972, and ending on September 30, 1977.".

(c) ELIGIBILITY FOR HOSPITAL CARE AND MEDICAL SERVICES.—Section 1710(e)(4), as amended by section 102(c), is further amended by striking subparagraph (A) and inserting the following new subparagraph:

"(A) The term 'Vietnam-era herbicide-exposed veteran' means a veteran who—

"(i) performed covered service, as defined in section 1116(d) of this title; or

"(ii) the Secretary finds may have been exposed during such service to dioxin or was exposed during such service to a toxic substance found in a herbicide or defoliant used for military purposes during such period.".

(d) CONFORMING AMENDMENT.—The heading for section 1116 is amended by striking "**the Republic of Vietnam**" and inserting "**certain locations**".

SEC. 404. ADDITION OF ADDITIONAL DISEASES ASSOCIATED WITH EXPOSURE TO CERTAIN HERBICIDE AGENTS FOR WHICH THERE IS A PRESUMPTION OF SERVICE CONNECTION FOR VETERANS WHO SERVED IN CERTAIN LOCATIONS.

(a) SHORT TITLE.—This section may be cited as the "Fair Care for Vietnam Veterans Act".

(b) ADDITIONAL DISEASES.—Section 1116(a)(2), as amended by section 9109 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116–283), is further amended by adding at the end the following new subparagraphs:

"(L) Hypertension.

"(M) Monoclonal gammopathy of undetermined significance.".

SEC. 405. IMPROVING COMPENSATION FOR DISABILITIES OCCURRING IN PERSIAN GULF WAR VETERANS.

(a) REDUCTION IN THRESHOLD OF ELIGIBILITY.—Subsection (a)(1) of section 1117 is amended by striking "became manifest—" and all that follows through the period at the end and inserting "became manifest to any degree at any time.".

(b) PERMANENT EXTENSION OF PERIOD OF ELIGIBILITY.—Such section is further amended—

(1) by striking subsection (b);

(2) by redesignating subsections (c) and (d) as subsections (b) and (c), respectively; and

(3) in subsection (a)(2)(C), by striking "under subsection (d)" and inserting "under subsection (c)".

(c) ESTABLISHING SINGULAR DISABILITY-BASED QUESTIONNAIRE.—Such section is further amended by inserting after subsection (c) (as redesignated by subsection (b)) the following new subsection (d):

"(d) If a Persian Gulf veteran at a medical facility of the Department presents with any one symptom associated with Gulf War Illness, the Secretary shall ensure that health care personnel of the Department use a disability benefits questionnaire, or successor questionnaire, designed to identify Gulf War Illness, in addition to any other diagnostic actions the personnel determine appropriate.".

(d) EXPANSION OF DEFINITION OF PERSIAN GULF VETERAN.—Subsection (f) of such section is amended by inserting ", Afghanistan, Israel, Egypt, Turkey, Syria, or Jordan," after "operations".

(e) TRAINING.—Such section is further amended by adding at the end the following new subsection:

"(i) (1) The Secretary shall take such actions as may be necessary to ensure that health care personnel of the Department are appropriately trained to effectively carry out this section.

"(2) Not less frequently than once each year, the Secretary shall submit to Congress a report on the actions taken by the Secretary to carry out paragraph (1).".

SEC. 406. PRESUMPTION OF SERVICE CONNECTION FOR CERTAIN DISEASES ASSOCIATED WITH EXPOSURE TO BURN PITS AND OTHER TOXINS.

(a) SHORT TITLE.—This section may be cited as the "Presumptive Benefits for War Fighters Exposed to Burn Pits and Other Toxins Act".

(b) IN GENERAL.—Subchapter II of chapter 11, as amended by section 302, is further amended by inserting after section 1119 the following new section:

“§1120. Presumption of service connection for certain diseases associated with exposure to burn pits and other toxins

“(a) PRESUMPTION OF SERVICE CONNECTION.—For the purposes of section 1110 of this title, and subject to section 1113 of this title, a disease specified in subsection (b) becoming manifest in a covered veteran shall be considered to have been incurred in or aggravated during active military, naval, air, or space service, notwithstanding that there is no record of evidence of such disease during the period of such service.

“(b) DISEASES SPECIFIED.—The diseases specified in this subsection are the following:

“(1) Asthma that was diagnosed after service of the covered veteran as specified in subsection (c).

“(2) The following types of cancer:

“(A) Head cancer of any type.

“(B) Neck cancer of any type.

“(C) Respiratory cancer of any type.

“(D) Gastrointestinal cancer of any type.

“(E) Reproductive cancer of any type.

“(F) Lymphoma cancer of any type.

“(G) Lymphomatic cancer of any type.

“(H) Kidney cancer.

“(I) Brain cancer.

“(J) Melanoma.

“(K) Pancreatic cancer.

“(3) Chronic bronchitis.

“(4) Chronic obstructive pulmonary disease.

“(5) Constrictive bronchiolitis or obliterative bronchiolitis.

“(6) Emphysema.

“(7) Granulomatous disease.

“(8) Interstitial lung disease.

“(9) Pleuritis.

“(10) Pulmonary fibrosis.

“(11) Sarcoidosis.

“(12) Chronic sinusitis.

“(13) Chronic rhinitis.

“(14) Glioblastoma.

“(15) Any other disease for which the Secretary determines, pursuant to regulations prescribed under subchapter VII that a presumption of service connection is warranted based on a positive association with a substance, chemical, or airborne hazard identified in the list under section 1119(b)(2) of this title.

"(c) COVERED VETERAN DEFINED.—In this section, the term 'covered veteran' has the meaning given that term in section 1119(c) of this title.".

(c) CONFORMING AMENDMENT.—Section 1113 is amended by striking "or 1118" each place it appears and inserting "1118, or 1120".

TITLE V—RESEARCH MATTERS

SEC. 501. INTERAGENCY WORKING GROUP ON TOXIC EXPOSURE RESEARCH.

(a) IN GENERAL.—Subchapter II of chapter 73 of title 38, United States Code, is amended by adding at the end the following new section:

"§7330D. Interagency working group on toxic exposure research

"(a) ESTABLISHMENT.—(1) The Secretary shall establish the Toxic Exposure Research Working Group (in this section referred to as the 'Working Group').

"(2) The Working Group shall consist of employees, selected by the Secretary, of the following:

"(A) The Department.

"(B) The Department of Defense.

"(C) The Department of Health and Human Services.

"(D) The Environmental Protection Agency.

"(E) Other Federal entities involved in research activities regarding the health consequences of toxic exposures experienced during active military, naval, air, or space service.

"(b) FUNCTIONS.—The Working Group shall perform the following functions:

"(1) Identify collaborative research activities and resources available among entities represented by members of the Working Group to conduct such collaborative research activities.

"(2) Develop a 5-year strategic plan for Federal entities represented in the Working Group to carry out collaborative research activities.

"(c) REPORTING.—The Secretary shall submit, to the Committees on Veterans' Affairs of the Senate and House of Representatives, the following:

"(1) Not later than one year after the date of the enactment of the Act, a report on the establishment of the Working Group under subsection (a).

"(2) Not later than two years after the date of enactment of the Act, a report containing the collaborative research activities identified, and the Strategic Plan developed, by the Working Group, under subsection (b).

"(3) Annually during the 5-year period covered by the strategic plan under subsection (b), a progress reports on implementation of the Strategic Plan under subsection (b).

"(d) TERMINATION.—The Working Group shall terminate after submitting the final report under subsection (c).

"(e) DEFINITIONS.—For purposes of this section—

"(1) The term 'Act' means the Honoring our Promise to Address Comprehensive Toxics Act of 2021.

"(2) The term 'collaborative research activity' means a research activity—

"(A) conducted by an entity represented by a member of the Working Group;

"(B) funded by the Federal Government; and

"(C) regarding the health consequences of toxic exposures experienced during active military, naval, air, or space service.".

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such subchapter is amended by inserting after the item relating to section 7330C the following new item:

"7330D. Interagency working group on toxic exposure research.".

(c) IMPLEMENTATION.—The Secretary of Veterans Affairs shall establish the Working Group under section 7330D of such title, as added by subsection (a), not later than one year after the date of the enactment of this Act.

SEC. 502. DATA COLLECTION, ANALYSIS, AND REPORT ON TREATMENT OF VETERANS FOR ILLNESSES RELATED TO TOXIC EXPOSURE.

(a) IN GENERAL.—The Secretary of Veterans Affairs shall compile and analyze, on a continuous basis, all clinical data that—

(1) is obtained by the Secretary in connection with hospital care (including mental health services and counseling), medical services, or nursing home care furnished to a veteran for an illness under section 1710(a)(2)(F) of title 38, United States Code, as amended by section 102; and

(2) is likely to be scientifically useful, as determined by the Secretary, in determining whether a positive association exists between the illness of the veteran and a toxic exposure.

(b) CONSENT OF PATIENTS.—The Secretary shall ensure that the compilation and analysis of the clinical data of a veteran under subsection (a) shall be conducted, and such data shall be used, in a manner that is consistent with the informed consent of the veteran and in compliance with all applicable Federal law.

(c) ANNUAL REPORT.—Not later than one year after the date of the enactment of this Act, and annually thereafter, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report containing—

(1) any data compiled under subsection (a);

(2) an analysis of any such data;

(3) a description of the types and incidences of illnesses identified by the Secretary pursuant to such subsection;

(4) an explanation by the Secretary for the incidence of such illnesses and such alternate explanations for the incidence of such illnesses as the Secretary may consider reasonable; and

(5) a description of the views of the Secretary regarding the scientific validity of drawing conclusions from the incidence of such illnesses, as evidenced by the data compiled under subsection (a), regarding the existence of a positive association between such illness and a toxic exposure.

(d) DEFINITIONS.—In this section:

(1) The term "toxic exposure" has the meaning given that term in section 101 of title 38, United States Code.

(2) The term "illness" has the meaning given that term in section 1171 of such title, as added by section 202.

SEC. 503. STUDIES RELATED TO VETERANS WHO SERVED IN SOUTHWEST ASIA AND CERTAIN OTHER LOCATIONS.

(a) ANALYSIS ON MORTALITY IN COVERED VETERANS.—

(1) ANALYSIS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall conduct an updated analysis of total and respiratory disease mortality in covered veterans.

(2) ELEMENTS.—The analysis under paragraph (1) shall include, to the extent practicable, the following:

(A) Metrics of airborne exposures.

(B) The location and timing of any deployments of the veteran.

(C) The military occupational specialty of the veteran.

(D) The Armed Force in which the veteran served.

(E) The preexisting health status of the veteran, including with respect to asthma.

(F) Such personal information of the veteran as the Secretary may consider relevant, including cigarette and e-cigarette smoking history, diet, sex, gender, age, race, and ethnicity.

(b) EPIDEMIOLOGICAL STUDY.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall conduct an epidemiological study of covered veterans that involves—

(1) the use of improved spatio-temporal estimates of ambient air pollution exposures that leverage advances in retrospective exposure assessment; and

(2) the collection of detailed information on the covered veterans studied through medical records, administrative data, and other existing sources, including, with respect to the covered veterans—

(A) personal information, including cigarette and e-cigarette smoking history, diet, sex, gender, age, race, and ethnicity;

(B) deployment history, including locations, periods, and number of deployments;

(C) biospecimen data; and

(D) supplementary health status and outcomes data, including imaging and physiological parameters.

(c) TOXICOLOGY STUDY.—

(1) STUDY.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall conduct a toxicology study, to include variability, to replicate toxic exposures of healthy, young members of the Armed Forces, as well as potentially susceptible members, with preexisting health conditions.

(2) ELEMENTS.—The study under paragraph (1) shall include—

(A) an analysis of results for mechanistic markers and clinically relevant outcomes; and

(B) a validation of any serum, tissue, or other biomarkers of toxic exposure, susceptibility, or effect with respect to the subjects of the study.

(d) COVERED VETERAN DEFINED.—In this section, the term "covered veteran" has the meaning given that term in section 1119(c) of title 38, United States Code, as added by section 302.

SEC. 504. STUDY ON HEALTH TRENDS OF POST 9/11 VETERANS.

(a) STUDY.—The Secretary of Veterans Affairs shall conduct an epidemiological study on the health trends of veterans who served in the Armed Forces after September 11, 2001.

(b) ELEMENTS.—The study under subsection (a) shall assess, with respect to each veteran included in the study, the following:

(1) The race and ethnicity of the veteran.

(2) The age of the veteran.

(3) The period of service and length of service of the veteran in the Armed Forces.

(4) Any military occupational speciality of the veteran.

(5) The gender of the veteran.

(6) The disability status of the veteran.

(c) REPORT.—Not later than two years after the date of the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the study under subsection (a).

SEC. 505. STUDY ON CANCER RATES AMONG VETERANS.

(a) STUDY.—The Secretary of Veterans Affairs shall conduct a study on the incidence of cancer in veterans, to determine trends in the rates of the incidence of cancer in veterans, and on available early detection diagnostics, to determine the feasibility and advisability of including such diagnostics as part of the health care furnished to veterans by the Secretary.

(b) ELEMENTS.—The study under subsection (a) shall assess, with respect to each veteran included in the study, the following:

(1) The race and ethnicity of the veteran.

(2) The age of the veteran.

(3) The period of service and length of service of the veteran in the Armed Forces.

(4) Any military occupational speciality of the veteran.

(5) The gender of the veteran.

(6) Any type of cancer that the veteran has.

(c) REPORT.—Not later than two years after the date of the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the study under subsection (a).

SEC. 506. STUDY ON FEASIBILITY AND ADVISABILITY OF FURNISHING HOSPITAL CARE AND MEDICAL SERVICES TO DEPENDENTS OF VETERANS WHO PARTICIPATED IN TOXIC EXPOSURE RISK ACTIVITIES.

(a) STUDY.—The Secretary of Veterans Affairs shall conduct a study on the feasibility and advisability of furnishing hospital care and medical services to qualifying dependents of veterans described in section 1710(e)(1)(G) of title 38, United States Code, as added by section 103(a)(1), for any illness determined by the Secretary to be connected to a toxic exposure risk activity carried out by the veteran, as determined by the Secretary, notwithstanding that there is insufficient medical evidence to conclude that such illness is attributable to such activity.

(b) ELEMENTS.—The study under subsection (a) shall include—

(1) an assessment of the impact of furnishing hospital care and medical services to qualifying dependents as described in such subsection on the ability of the Department of Veterans Affairs to furnish hospital care and medical services to veterans;

(2) an assessment of the potential cost of furnishing hospital care and medical services to qualifying dependents as described in such subsection;

(3) an estimate of the resources required to furnish such care and services;

(4) an assessment of any stress or other effect furnishing such care and services would have on the claims and appeals system of the Department;

(5) an estimate of the number of qualifying dependents who would be eligible for such care and services; and

(6) an assessment of the feasibility of adjudicating claims for such care and services.

(c) PHASED-IN APPLICATION.—In conducting the study under subsection (a), the Secretary shall assess the feasibility and advisability of phasing in the furnishing of hospital care and medical services to qualifying dependents described in such subsection by the decade in which such toxic exposure risk activity occurred, starting with the most recent decade.

(d) REVIEW OF TOXIC EXPOSURE CASES REGARDING LIABILITY OF DEPARTMENT OF DEFENSE.—In conducting the study under subsection (a), the Secretary shall—

(1) review known cases of toxic exposure on military installations of the Department of Defense;

(2) analyze the liability of the Department of Defense in each such case; and

(3) assess whether the Secretary of Defense should provide care and services relating to such toxic exposures under the TRICARE program.

(e) REPORT.—Not later than two years after the date of the enactment of this Act, the Secretary shall submit to Congress a report on the study conducted under subsection (a).

(f) DEFINITIONS.—In this section:

(1) The terms “hospital care” and “medical services” have the meanings given those terms in section 1701 of title 38, United States Code.

(2) The term “illness” has the meaning given that term in section 1171 of such title, as added by section 202.

(3) The term “qualifying dependent” means—

(A) a dependent of a veteran described in section 1710(e)(1)(G) of title 38, United States Code, as added by section 104(a)(1), who resided with the veteran

during the period in which, and on the installation at which, the veteran participated in a toxic exposure risk activity;

(B) an individual who was in utero of such a veteran or other qualifying dependent when the veteran participated in a toxic exposure risk activity; or

(C) a dependent of such a veteran who is not described in subparagraph (A) or (B) but who may have an illness that is connected to the toxic exposure risk activity of the veteran, as determined by the Secretary.

(4) The term "toxic exposure" has the meaning given that term in section 101 of such title, as added by section 102(b).

(5) The term "toxic exposure risk activity" has the meaning given that term in section 1710(e)(4) of such title, as added by section 102(c).

(6) The term "TRICARE program" has the meaning given that term in section 1072 of such title.

SEC. 507. STUDY ON HEALTH EFFECTS OF WASTE RELATED TO MANHATTAN PROJECT ON CERTAIN VETERANS.

(a) STUDY.—The Secretary of Veterans Affairs shall conduct a study on the health trends of veterans who, while serving in the active military, naval, air, or space service—

(1) participated in activities relating to the Manhattan Project (including activities relating to covered waste) in connection with such service; or

(2) resided at or near, as determined by the Secretary, the locations described in subsection (b).

(b) COVERED LOCATIONS.—The locations described in this subsection are the following locations in the county of St. Louis, Missouri:

(1) Coldwater Creek.

(2) The St. Louis Airport Site.

(3) The West Lake Landfill.

(4) Any other location in the county of St. Louis, Missouri that is proximate to covered waste, as determined by the Secretary.

(c) ELEMENTS.—The study under subsection (a) shall assess, with respect to each veteran included in the study, the following:

(1) The age, gender, and race of the veteran.

(2) The period and location of exposure to covered waste.

(3) Any type of cancer, or other illness associated with toxic exposure, that the veteran has.

(4) A comparison of the overall health condition of the veteran, including any illness of the veteran identified pursuant to paragraph (3), with the overall health condition of past and present civilian populations residing at the same location of exposure.

(d) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the study under subsection (a).

(e) DEFINITIONS.—In this section:

(1) The term "covered waste" means any waste arising from activities carried out in connection with the Manhattan Project.

(2) The term "illness" has the meaning given that term in section 1171 of title 38, United States Code, as added by section 202.

(3) The term "toxic exposure" has the meaning given that term in section 101 of such title, as added by section 102(b).

SEC. 508. STUDY ON TOXIC EXPOSURE AND MENTAL HEALTH OUTCOMES.

(a) STUDY REQUIRED.—The Secretary of the Department of Veterans Affairs shall enter into an agreement with the National Academies of Sciences, Engineering, and Medicine for the conduct of a study of veterans to assess possible relationships between toxic exposures experienced during service in the Armed Forces and mental health outcomes, including chronic multisymptom illness, traumatic brain injury, post-traumatic stress disorder, depression, psychosis, suicide attempts, and suicide deaths.

(b) ELEMENTS.—For each veteran included in the study under subsection (a), the following information shall be collected and assessed:

(1) Age.

(2) Gender.

(3) Race and ethnicity.

(4) Period and length of service in the Armed Forces.

(5) History of toxic exposure during service in the Armed Forces.

(6) Any diagnosis of chronic multisymptom illness.

(7) Any diagnosis of a mental health or cognitive disorder.

(8) Any history of suicide attempt or suidcidality.

(9) If the veteran died by suicide.

(c) REPORT.—Not later than two years after the date after the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report containing the findings of the study conducted under subsection (a).

SEC. 509. STUDY ON VETERANS IN TERRITORIES OF THE UNITED STATES.

(a) GAO STUDY.—

(1) IN GENERAL.—The Comptroller General of the United States shall conduct a study on the state of access and barriers to benefits and services furnished under laws administered by the Secretary of Veterans Affairs to veterans in Territories of the United States, including deficits in the availability and accessibility of such benefits and services compared to veterans elsewhere in the United States.

(2) ELEMENTS.—The study under paragraph (1) shall include—

(A) the number of veterans in each Territory of the United States;

(B) the number of veterans in each Territory who are enrolled in the system of annual patient enrollment of the Department of Veterans Affairs under section 1705(a) of title 38, United States Code;

(C) the number of veterans in each Territory who are eligible for services under section 1710 of such title but who are not enrolled as described in subparagraph (B);

(D) a detailed description of obstacles facing veterans in each Territory in accessing health care services, including those involving the availability of such services to veterans in the Territory in which the veterans reside, and the distance required of veterans to journey to receive services at a regional medical center of the Veterans Health Administration, a community-based outpatient clinic, or other full-service medical facility of the Department, or death center, respectively;

(E) a detailed description of obstacles facing veterans in each Territory in accessing readjustment counseling services, including those involving the availability of such services to veterans in the Territory in which the veterans reside, and the distance required of veterans to journey to receive services at a readjustment counseling services center of the Department;

(F) a detailed description of obstacles facing veterans in each Territory in accessing other veterans benefits, including those involving the availability of benefits and services to veterans in the Territory in which the veterans reside, and the distance required of the veterans to journey to the nearest office of the Veterans Benefits Administration;

(G) an analysis of the staffing and recordkeeping levels and quality of the offices of the Department charged with serving veterans in the Territories, including the availability of the full- and part-time staff of each office to the veterans they are charged with serving, and the continuity of care provided by such staff to such veterans;

(H) an analysis of the availability of the Veterans Community Care Program established under section 1703 of title 38, United States Code, to veterans in each Territory;

(I) an analysis of the economic and health consequences for veterans in each Territory resulting from obstacles to accessing adequate assistance and health care at facilities of the Department;

(J) an analysis of the access to assistance and health care provided to veterans in the aftermath of major disasters declared in each of the Territories since September 4, 2017; and

(K) recommendations for improving access of veterans in the Territories to benefits and services furnished by the Secretary, and reducing barriers and deficits in the availability and accessibility of such benefits and services compared to veterans elsewhere in the United States.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Comptroller General of the United States shall submit to Congress a final report setting forth the results of the study conducted under subsection (a), including the recommendations developed under paragraph (2)(K) of such subsection.

(c) TERRITORY DEFINED.—In this section, the term "Territory" includes American Samoa, the Commonwealth of the Northern Marianas Islands, Guam, Puerto Rico, and the Virgin Islands.

SEC. 510. DEPARTMENT OF VETERANS AFFAIRS PUBLIC WEBSITE FOR TOXIC EXPOSURE RESEARCH.

(a) WEBSITE.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall establish, and maintain thereafter, a publically accessible internet website of the Department of Veterans Affairs that serves as a clearinghouse for the publication of all toxic exposure research carried out or funded by the executive branch of the Federal Government.

(b) RELATION TO WAR RELATED ILLNESS AND INJURY STUDY CENTER.—The website developed and maintained under subsection (a) shall be housed under the website of the War Related Illness and Injury Study Center of the Department of Veterans Affairs, or successor center.

(c) COORDINATION.—In carrying out subsection (a), the Secretary shall coordinate with—

(1) the heads of each Federal department or agency carrying out or funding toxic exposure research;

(2) the War Related Illness and Injury Study Center of the Department of Veterans Affairs, or successor center; and

(3) any working group of the Department of Veterans Affairs or other similar entity responsible for coordinating toxic exposure research.

(d) DEFINITIONS.—In this section:

(1) The term "toxic exposure" has the meaning given that term in section 101 of title 38, United States Code, as added by section 102(b).

(2) The term "toxic exposure research" means research on the health consequences of toxic exposures experienced during service in the Armed Forces.

SEC. 511. BIENNIAL REPORT ON HEALTH EFFECTS OF JET FUELS USED BY ARMED FORCES.

Not later than one year after the date of the enactment of this Act, and biennially thereafter during the subsequent eight-year period, the Secretary of Veterans Affairs shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate, and make publicly available, a report that includes—

(1) a discussion of the effect of various different types of jet fuels used by the Armed Forces on the health of individuals by length of exposure;

(2) an identification of the immediate symptoms of jet fuel exposure that may indicate future health risks;

(3) a chronology of health safeguards implemented by the Armed Forces intended to reduce the exposure of members of the Armed Foces to jet fuel; and

(4) an identification of any areas relating to jet fuel exposure about which new research needs to be conducted.

TITLE VI—IMPROVEMENT OF RESOURCES AND TRAINING REGARDING TOXIC-EXPOSED VETERANS

SEC. 601. SHORT TITLE; DEFINITIONS.

(a) SHORT TITLE.—This title may be cited as the "Toxic Exposure in the American Military Act" or the "TEAM Act".

(b) DEFINITIONS.—In this title, the terms "active military, naval, air, or space service", "toxic exposure", and "toxic-exposed veteran" have the meanings given those terms in section 101 of title 38, United States Code.

SEC. 602. PUBLICATION OF LIST OF RESOURCES OF DEPARTMENT OF VETERANS AFFAIRS FOR TOXIC-EXPOSED VETERANS AND OUTREACH PROGRAM FOR SUCH VETERANS AND CAREGIVERS AND SURVIVORS OF SUCH VETERANS.

(a) PUBLICATION OF LIST OF RESOURCES.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, and annually thereafter, the Secretary of Veterans Affairs shall publish a list of resources of the Department of Veterans Affairs for—

(A) toxic-exposed veterans, including with respect to—

(i) disability compensation under chapter 11 of title 38, United States Code; and

(ii) hospital care, medical services, and nursing home care under section 1710(a)(2)(F) of such title;

(B) caregivers of toxic-exposed veterans who are participating in the program of comprehensive assistance for family caregivers under section 1720G(a) of such title; and

(C) survivors of toxic-exposed veterans who are receiving death benefits under the laws administered by the Secretary.

(2) UPDATE.—The Secretary shall periodically update the list published under paragraph (1).

(3) LANGUAGES.—The Secretary shall publish the list under paragraph (1) in languages including the following:

(A) English.

(B) Spanish.

(C) Chinese.

(D) The seven other most commonly spoken languages in the United States.

(b) OUTREACH.—The Secretary shall develop, with input from the community, an informative outreach program for veterans on illnesses that may be related to toxic exposure, including outreach with respect to benefits and support programs. Information distributed under the outreach program shall be treated as a fact sheet of the Department of Veterans Affairs for purposes of making the information available in multiple languages pursuant to section 2 of the Veterans and Family Information Act (Public Law 117–62; 38 U.S.C. 6303 note).

(c) VETERANS ORGANIZATIONS.—To the extent practicable, the Secretary shall share with national veterans service organizations and other veterans groups, including such organizations and groups that improve access by veterans to health care and benefits, the list of resources under subsection (a) and the outreach program under subsection (b).

SEC. 603. INCORPORATION OF TOXIC EXPOSURE QUESTIONNAIRE DURING PRIMARY CARE APPOINTMENTS.

(a) IN GENERAL.—The Secretary of Veterans Affairs shall incorporate a clinical questionnaire to help determine potential toxic exposures during active military, naval, air, or space service as part of the initial screening conducted for an appointment of a veteran with a primary care provider of the Department of Veterans Affairs to improve understanding by the Department of toxic exposures of veterans while serving in the Armed Forces.

(b) DETERMINATION OF QUESTIONS.—The questions included in the questionnaire required under subsection (a) shall be determined by the Secretary with input from medical professionals.

SEC. 604. TRAINING FOR PERSONNEL OF THE DEPARTMENT OF VETERANS AFFAIRS WITH RESPECT TO TOXIC-EXPOSED VETERANS.

(a) HEALTH CARE PERSONNEL.—The Secretary of Veterans Affairs shall provide to health care personnel of the Department of Veterans Affairs education and training to identify, treat, and assess the impact on toxic-exposed veterans of illnesses related to toxic exposure and inform such personnel of how to ask for additional information from veterans regarding different toxic exposures.

(b) BENEFITS PERSONNEL.—

(1) STANDARD CLAIMS PROCESSOR TRAINING CURRICULUM.—

(A) CURRICULUM.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall ensure that a standard training curriculum exists for processors of claims under the laws administered by the Secretary who review claims for disability benefits relating to service-connected disabilities based on toxic exposure, including employees who adjudicate such claims.

(B) MATTERS INCLUDED.—The Secretary shall ensure that the training under subparagraph (A) includes the following explanations with respect to claims relating to toxic exposure:

(i) A lack of a presumption of service connection is not by itself sufficient to determine that service connection does not exist.

(ii) The claims adjudicator shall always consider whether direct service connection is applicable and request, as needed, an advisory medical opinion pursuant to section 1168 of title 38, United States Code, as added by section 303.

(iii) The claims adjudicator may review and consider any record of the claimant in an exposure tracking record system pursuant to section 1119 of such title, as added by section 302, but a lack of such information is not by itself sufficient to determine that such exposure did not occur or sufficient to deny the claim.

(C) PROVISION OF TRAINING.—The Secretary shall—

(i) provide training under subparagraph (A) to each employee described in such subparagraph not less frequently than annually; and

(ii) using the Systematic Technical Accuracy Review program, or such successor program, conduct a nationwide, quarterly, randomized review of the quality of adjudication of claims relating to toxic exposure.

(2) STANDARD MEDICAL EXAMINER TRAINING CURRICULUM.—

(A) CURRICULUM.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall ensure that a standard medical training curriculum exists for medical providers who conduct examinations and provide opinions pursuant to section 1168 of title 38, United States Code, as added by section 303, regardless of whether the provider is an employee of the Department or a contractor.

(B) STANDARDIZED APPROACH.—The Secretary shall ensure that the curriculum established under subparagraph (A)—

(i) provides a standardized approach to conducting and providing examinations and opinions in accordance with such section 1168; and

(ii) instructs medical providers to consider, when conducting an examination or providing an opinion—

(I) relevant medical and scientific literature;

(II) the proximity, intensity, and frequency of exposure of the individual to the identified toxic exposure;

(III) medically unexplained chronic multisymptom illnesses; and

(IV) all competent and credible evidence of record.

SEC. 605. GUIDELINES FOR ACTIVE DUTY MILITARY ON POTENTIAL RISKS AND PREVENTION OF TOXIC EXPOSURES.

Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense and the Secretary of Veterans Affairs shall jointly coordinate and establish guidelines to be used during training of members of the Armed Forces serving on active duty to provide the members awareness of the potential risks of toxic exposures and ways to prevent being exposed during combat.

TITLE VII—REGISTRIES, RECORDS, AND OTHER MATTERS

SEC. 701. REGISTRY OF INDIVIDUALS EXPOSED TO PER- AND POLYFLUOROALKYL SUBSTANCES ON MILITARY INSTALLATIONS.

(a) ESTABLISHMENT OF REGISTRY.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(A) establish and maintain a registry for eligible individuals who may have been exposed to per- and polyfluoroalkyl substances (in this section referred to as "PFAS") due to the environmental release of aqueous film-forming foam (in this section referred to as "AFFF") on military installations to meet the requirements of military specification MIL–F–24385F;

(B) include any information in such registry that the Secretary determines necessary to ascertain and monitor the health effects of the exposure of members of the Armed Forces to PFAS associated with AFFF;

(C) develop a public information campaign to inform eligible individuals about the registry, including how to register and the benefits of registering; and

(D) periodically notify eligible individuals of significant developments in the study and treatment of conditions associated with exposure to PFAS.

(2) COORDINATION.—The Secretary of Veterans Affairs shall coordinate with the Secretary of Defense in carrying out paragraph (1).

(b) REPORTS.—

(1) INITIAL REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to Congress a report regarding the following:

(A) Sources of PFAS on military installations other than AFFF.

(B) Any recommendation of the Secretary regarding whether to expand eligibility for the registry to individuals exposed to sources of PFAS described in subparagraph (A).

(2) INTERIM REPORT.—Not later than two years after the date on which the registry under subsection (a) is established, the Secretary of Veterans Affairs shall submit to Congress an initial report containing the following:

(A) An assessment of the effectiveness of actions taken by the Secretary of Veterans Affairs and the Secretary of Defense to collect and maintain information on the health effects of exposure to PFAS.

(B) Recommendations to improve the collection and maintenance of such information.

(C) Using established and previously published epidemiological studies, recommendations regarding the most effective and prudent means of addressing the medical needs of eligible individuals with respect to exposure to PFAS.

(3) FOLLOWUP REPORT.—Not later than five years after submitting the initial report under paragraph (1), the Secretary of Veterans Affairs shall submit to Congress a followup report containing the following:

(A) An update to the initial report submitted under paragraph (1).

(B) An assessment of whether and to what degree the content of the registry established under subsection (a) is current and scientifically up to date.

(4) INDEPENDENT SCIENTIFIC ORGANIZATION.—The Secretary of Veterans Affairs shall enter into an agreement with an independent scientific organization to prepare the reports under paragraphs (1) and (2).

(c) RECOMMENDATIONS FOR ADDITIONAL EXPOSURES TO BE INCLUDED.—Not later than five years after the date of the enactment of this Act, and every five years thereafter, the Secretary of Veterans Affairs, in consultation with the Secretary of Defense and the Administrator of the Environmental Protection Agency, shall submit to Congress recommendations for additional chemicals with respect to which individuals exposed to such chemicals should be included in the registry established under subsection (a).

(d) ELIGIBLE INDIVIDUAL DEFINED.—In this section, the term "eligible individual" means any individual who, on or after a date specified by the Secretary of Veterans Affairs through regulations, served or is serving in the Armed Forces at a military installation where AFFF was used or at another location of the Department of Defense where AFFF was used.

SEC. 702. FORT MCCLELLAN HEALTH REGISTRY.

(a) ESTABLISHMENT.—The Secretary of Veterans Affairs shall establish and maintain a special record to be known as the Fort McClellan Health Registry (in this section referred to as

the “Registry”).

(b) CONTENTS.—Except as provided in subsection (c), the Registry shall include the following information:

(1) A list containing the name of each individual who, while serving as a member of the Armed Forces, was stationed at Fort McClellan, Alabama, at any time during the period beginning January 1, 1935, and ending on May 20, 1999, and who—

(A) applies for care or services from the Department of Veterans Affairs under chapter 17 of title 38, United States Code;

(B) files a claim for compensation under chapter 11 of such title on the basis of any disability which may be associated with such service;

(C) dies and is survived by a spouse, child, or parent who files a claim for dependency and indemnity compensation under chapter 13 of such title on the basis of such service;

(D) requests from the Secretary a health examination under subsection (d); or

(E) receives from the Secretary a health examination similar to the health examination referred to in subparagraph (D) and requests inclusion in the Registry.

(2) Relevant medical data relating to the health status of, and other information that the Secretary considers relevant and appropriate with respect to, each individual described in paragraph (1) who—

(A) grants to the Secretary permission to include such information in the Registry; or

(B) at the time the individual is listed in the Registry, is deceased.

(c) INDIVIDUALS SUBMITTING CLAIMS OR MAKING REQUESTS BEFORE DATE OF ENACTMENT.—If in the case of an individual described in subsection (b)(1) the application, claim, or request referred to in such subsection was submitted, filed, or made before the date of the enactment of this Act, the Secretary shall, to the extent feasible, include in the Registry such individual's name and the data and information, if any, described in subsection (b)(2) relating to the individual.

(d) EXAMINATIONS.—Upon the request of a veteran who was stationed at Fort McClellan, Alabama, at any time during the period beginning January 1, 1935, and ending on May 20, 1999, the Secretary shall provide the veteran with a health examination (including any appropriate diagnostic tests) and consultation and counseling with respect to the results of the examination and the tests.

(e) OUTREACH.—

(1) ONGOING OUTREACH TO INDIVIDUALS LISTED IN REGISTRY.—The Secretary shall, from time to time, notify individuals listed in the Registry of significant developments in research on the health consequences of potential exposure to a toxic substance or environmental hazard related to service at Fort McClellan.

(2) EXAMINATION OUTREACH.—The Secretary shall carry out appropriate outreach activities with respect to the provision of any health examinations (including any diagnostic tests) and consultation and counseling services under subsection (d).

(f) CONSULTATION.—The Secretary of Veterans Affairs shall consult with the Secretary of Defense to acquire information maintained by the Secretary of Defense that the Secretary of Veterans Affairs considers necessary to establish and maintain the Registry.

SEC. 703. INDEPENDENT STUDY ON INDIVIDUAL LONGITUDINAL EXPOSURE RECORD.

(a) IN GENERAL.—Not later than 60 days after the date of the enactment of this Act, the Secretary of Defense shall enter into a contract with an independent research entity described in subsection (b) to carry out a comprehensive study of the development of the Individual Longitudinal Exposure Record, or successor system, to determine—

(1) the quality of the location data, occupational and environmental exposure data, and health surveillance data; and

(2) whether a member of the Armed Forces can be reasonably assured that any toxic exposure they experience during service in the Armed Forces will be accurately reflected in the record of the member in such Individual Longitudinal Exposure Record.

(b) INDEPENDENT RESEARCH ENTITY.—The entity described in this subsection is an independent research entity that is a not-for-profit entity or a federally funded research and development center with appropriate expertise and analytical capability to carry out the study required under subsection (a).

(c) TOXIC EXPOSURE DEFINED.—In this section, the term "toxic exposure" has the meaning given that term in section 101(37) of title 38, United States Code, as added by section 102(b).

SEC. 704. BIANNUAL REPORT ON INDIVIDUAL LONGITUDINAL EXPOSURE RECORD.

(a) IN GENERAL.—Not later than one year after the date on which the Individual Longitudinal Exposure Record, or successor system, achieves full operation capability, as determined by the Secretary of Defense, and every 180 days thereafter, the Secretary of Defense, in consultation with the Secretary of Veterans Affairs, shall submit to the appropriate committees of Congress a report on—

(1) the data quality of the databases of the Department of Defense that provide the information presented in such Individual Longitudinal Exposure Record; and

(2) the usefulness of such Individual Longitudinal Exposure Record in supporting members of the Armed Forces and veterans in receiving health care and benefits from the Department of Defense and the Department of Veterans Affairs.

(b) ELEMENTS.—Each report required by subsection (a) shall include, for the period covered by the report, the following:

(1) An identification of toxic exposure events that may not be fully captured by the current systems of the Department of Defense for environmental, occupational, and health monitoring, and recommendations for how to improve those systems.

(2) An analysis of the quality of the location data used by the Department of Defense in determining toxic exposures of members of the Armed Forces and veterans, and recommendations for how to improve the quality of that location data if necessary.

(c) REPORT ON NATIONAL GUARD USE OF ILER.—Not later than one year after the date of the enactment of this Act, the Secretary of Defense shall submit to the appropriate

committees of Congress a report on the feasibility of modifying the Individual Longitudinal Exposure Record to ensure that a member of the National Guard who is deployed in the United States in connection with a natural disaster, without regard to duty status (including any duty under title 10 or title 32, United States Code, or State active duty), may record information regarding a suspected exposure by the member to toxic substances during such deployment.

(d) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term "appropriate committees of Congress" means—

(A) the Committee on Armed Services and the Committee on Veterans' Affairs of the Senate; and

(B) the Committee on Armed Services and the Committee on Veterans' Affairs of the House of Representatives.

(2) TOXIC EXPOSURE.—The term "toxic exposure" has the meaning given that term in section 101(37) of title 38, United States Code, as added by section 102(b).

SEC. 705. CORRECTION OF EXPOSURE RECORDS BY MEMBERS OF THE ARMED FORCES AND VETERANS.

(a) IN GENERAL.—The Secretary of Defense shall provide a means for members of the Armed Forces and veterans to update their records as necessary to reflect a toxic exposure by such member or veteran in the Individual Longitudinal Exposure Record, or successor system.

(b) EVIDENCE.—

(1) PROVISION OF EVIDENCE.—To update a record under subsection (a), a member of the Armed Forces or veteran, as the case may be, shall provide such evidence as the Secretary of Defense considers necessary.

(2) BENEFIT OF THE DOUBT.—In reviewing evidence provided under paragraph (1), the Secretary of Defense shall give the benefit of the doubt to the member of the Armed Forces or veteran who provided the evidence, as the case may be, in a manner that is equivalent to the benefit of the doubt required under section 5107(b) of title 38, United States Code.

(3) REGULATIONS.—The Secretary of Defense shall prescribe by regulation the evidence considered necessary under paragraph (1).

(c) TOXIC EXPOSURE DEFINED.—In this section, the term "toxic exposure" has the meaning given that term in section 101(37) of title 38, United States Code, as added by section 102(b).

SEC. 706. FEDERAL CAUSE OF ACTION RELATING TO WATER AT CAMP LEJEUNE, NORTH CAROLINA.

(a) IN GENERAL.—An individual, including a veteran (as defined in section 101 of title 38, United States Code), or the legal representative of such an individual, who resided, worked, or was otherwise exposed (including in utero exposure) for not less than 30 days during the period beginning on August 1, 1953, and ending on December 31, 1987, to water at Camp Lejeune, North Carolina, that was supplied by, or on behalf of, the United States may bring an action in the United States District Court for the Eastern District of North Carolina to obtain appropriate relief for harm that was caused by exposure to the water at Camp Lejeune.

(b) Burdens And Standard Of Proof.—

(1) IN GENERAL.—The burden of proof shall be on the party filing the action to show one or more relationships between the water at Camp Lejeune and the harm.

(2) STANDARDS.—To meet the burden of proof described in paragraph (1), a party shall produce evidence showing that the relationship between exposure to the water at Camp Lejeune and the harm is—

(A) sufficient to conclude that a causal relationship exists; or

(B) sufficient to conclude that a causal relationship is at least as likely as not.

(c) Exclusive Jurisdiction And Venue.—The United States District Court for the Eastern District of North Carolina shall have exclusive jurisdiction over any action filed under subsection (a), and shall be the exclusive venue for such an action. Nothing in this subsection shall impair the right of any party to a trial by jury.

(d) Exclusive Remedy.—

(1) IN GENERAL.—An individual, or legal representative of an individual, who brings an action under this section for a harm described in subsection (a), including a latent disease, may not thereafter bring a tort action against the United States for such harm pursuant to any other law.

(2) HEALTH AND DISABILITY BENEFITS RELATING TO WATER EXPOSURE.—Any award made to an individual, or legal representative of an individual, under this section shall be offset by the amount of any disability award, payment, or benefit provided to the individual, or legal representative—

(A) under—

(i) any program under the laws administered by the Secretary of Veterans Affairs;

(ii) the Medicare program under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.); or

(iii) the Medicaid program under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.); and

(B) in connection with health care or a disability relating to exposure to the water at Camp Lejeune.

(e) Immunity Limitation.—The United States may not assert any claim to immunity in an action under this section that would otherwise be available under section 2680(a) of title 28, United States Code.

(f) No Punitive Damages.—Punitive damages may not be awarded in any action under this section.

(g) Disposition By Federal Agency Required.—An individual may not bring an action under this section before complying with section 2675 of title 28, United States Code.

(h) Exception For Combatant Activities.—This section does not apply to any claim or action arising out of the combatant activities of the Armed Forces.

(i) Applicability; Period For Filing.—

(1) APPLICABILITY.—This section shall apply only to a claim accruing before the date of enactment of this Act.

(2) STATUTE OF LIMITATIONS.—A claim in an action under this section may not be commenced after the later of—

(A) the date that is two years after the date of enactment of this Act; or

(B) the date that is 180 days after the date on which the claim is denied under section 2675 of title 28, United States Code.

(3) INAPPLICABILITY OF OTHER LIMITATIONS.—Any applicable statute of repose or statute of limitations, other than under paragraph (2), shall not apply to a claim under this section.

SEC. 707. VETERANS TOXIC EXPOSURES FUND.

Chapter 3 is amended by adding at the end the following new section:

"§324. Veterans Toxic Exposures Fund

"(a) ESTABLISHMENT.—There is hereby established in the Treasury of the United States an account to be known as the "Veterans Toxic Exposures Fund" (the "Fund"), to be administered through the Department of Veterans Affairs, to provide for investment in the delivery of veterans' health care, research, and benefits associated with hazardous exposure in service.

"(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Fund for fiscal year 2023 and each subsequent fiscal year such sums as are necessary to increase funding, over the fiscal year 2021 level for the Veterans Health Administration of the Department of Veterans Affairs, for any expenses incident to the delivery of veterans' health care and benefits associated with exposure to environmental hazards in service, including administrative expenses, such as claims processing and appeals, and for medical research related to hazardous exposures. Amounts appropriated to the Fund pursuant to this subsection shall be counted as direct spending under the Congressional Budget and Impoundment Control Act of 1974 and any other Act.

"(c) ESTIMATES FOR CONGRESSIONAL CONSIDERATION.—The Secretary shall include in documents submitted to Congress in support of the President's budget submitted pursuant to section 1105 of title 31, United States Code, detailed estimates of the sums described in subsection (b) for the applicable fiscal year.

"(d) PROCEDURES FOR ESTIMATES.—The Secretary, after consultation with the Committees on Appropriations of the House of Representatives and the Senate, may establish policies and procedures for developing the annual detailed estimates required in subsection (c).".

SEC. 708. AUTHORIZATION OF ELECTRONIC NOTICE IN CLAIMS UNDER LAWS ADMINISTERED BY THE SECRETARY OF VETERANS AFFAIRS.

Title 38, United States Code, is amended as follows:

(1) By striking section 5100 and inserting the following:

"§5100. Definitions

"In this chapter:

"(1) The term 'claimant' means any individual applying for, or submitting a claim for, any benefit under the laws administered by the Secretary.

"(2) The term 'notice' means a communication issued through means (including electronic means) prescribed by the Secretary.".

(2) In section 5104, by adding at the end the following new subsection:

"(c) The Secretary may provide notice under subsection (a) electronically if a claimant (or the claimant's representative) elects to receive such notice electronically. A claimant (or the claimant's representative) may revoke such an election at any time, by means prescribed by the Secretary.

"(d) The Secretary shall annually—

"(1) solicit recommendations from stakeholders on how to improve notice under this section; and

"(2) publish such recommendations on a publicly available website of the Department.".

(3) In section 5104B(c), in the matter preceding paragraph (1) by striking "in writing" and inserting "to the claimant (and any representative of such claimant)".

(4) In section 7104—

(A) in the heading, by adding "**; decisions; notice**" at the end; and

(B) by striking subsection (e) and inserting the following:

"(e) After reaching a decision on an appeal, the Board shall promptly issue notice (as that term is defined in section 5100 of this title) of such decision to the following:

"(1) The appellant.

"(2) Any other party with a right to notice of such decision.

"(3) Any authorized representative of the appellant or party described in paragraph (2).

"(f) The Secretary may provide notice under subsection (e) electronically if a claimant (or the claimant's representative) elects to receive such notice electronically. A claimant (or the claimant's representative) may revoke such an election at any time, by means prescribed by the Secretary.".

(5) In section 7105(b)(1)(A), by striking "mailing" and inserting "issuance".

(6) In section 7105A(a), by striking "mailed" and inserting "issued".

(7) In section 7266(a), by striking "mailed" and inserting "issued".

SEC. 709. AUTHORIZATION OF APPROPRIATIONS FOR EXPANSION OF CLAIMS AUTOMATION.

There is authorized to be appropriated to the Secretary of Veterans Affairs $30,000,000 for fiscal year 2023 to support expected increased claims processing for newly eligible veterans pursuant to this Act and the amendments made by this Act by—

(1) supporting the automation of processing claims by the Veterans Benefits Administration of the Department of Veterans Affairs;

(2) adding self-service features to the system by which individuals file claims;

(3) removing duplicative efforts regarding the processing of claims; and

(4) reducing the dependency of the Department on the legacy claim system.

SEC. 710. NON-APPLICABILITY OF NON-DEPARTMENT OF VETERANS AFFAIRS COVENANTS NOT TO COMPETE TO APPOINTMENT OF VETERANS HEALTH ADMINISTRATION PERSONNEL.

(a) IN GENERAL.—Subchapter I of chapter 74 of title 38, United States Code, is amended by adding at the end the following new section:

"§7414. Effect of non-Department covenants not to compete

"(a) NON-APPLICABILITY.—Except as provided in subsection (b), in the case of an individual who is an applicant for appointment to a position in the Veterans Health Administration described in section 7401 of this title, any covenant not to compete into which the individual has entered with a non-Department facility or party shall have no force or effect with respect to the appointment of the individual to such a position.

"(b) SERVICE OBLIGATION.—(1) Any individual who is appointed to such a position in the Veterans Health Administration shall, as a condition of such appointment, agree to provide clinical services at a Department medical facility for the duration of the period described in paragraph (2).

"(2) The period described in this paragraph is the period that begins on the date on which an individual is appointed to such a position and ends on the latter of the following dates:

"(A) The date that is one year after such date of appointment.

"(B) The date of the termination of any covenant not to compete entered into between the individual and a non-Department facility or party.

"(3) The Secretary may waive the requirement under paragraph (1) with respect to an individual at the discretion of the Secretary.

"(c) TERMINATION OF DEPARTMENT EMPLOYMENT.—In the case of an individual who is appointed to such a position in the Veterans Health Administration who has entered into a covenant not to compete that is rendered non-applicable pursuant to subsection (a), if the individual's employment at the Veterans Health Administration is terminated for any reason before the specified termination date of such covenant, subsection (a) shall not apply with respect to such covenant after the date of the termination of the individual's employment at the Veterans Health Administration.

"(d) COVENANT NOT TO COMPETE.—In this section, the term 'covenant not to compete' means an agreement—

"(1) between an employee and employer or a contractor and principal that restricts such employee or contractor from performing—

"(A) any work for another employer for a specified period of time;

"(B) any work in a specified geographical area; or

"(C) work for another employer performing work that is similar to the work such employee or contractor performed for the employer or principal, included as a party to the agreement; and

"(2) that is entered into after the date of enactment of this Act.".

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by inserting after the item relating to section 7413 the following new item:

"7414. Effect of non-Department covenants not to compete.".

SEC. 711. RECRUITMENT OF PHYSICIANS ON A CONTINGENT BASIS PRIOR TO COMPLETION OF TRAINING REQUIREMENTS.

Section 7402 of title 38, United States Code, is amended—

(1) in subsection (b)(1)—

(A) in the matter preceding subparagraph (A) by inserting "or to be offered an appointment to such position on a contingent basis under subsection (h)" after "position"; and

(B) by striking subparagraph (B) and inserting the following:

"(B) (i) have completed a residency leading to board eligibility in a specialty, satisfactory to the Secretary; or

"(ii) with respect to an offer for an appointment on a contingent basis under subsection (h), complete such a residency by not later than two years after the date of such offer; and"; and

(2) by adding at the end the following new subsection:

"(h) (1) The Secretary may appoint an individual under subsection (b)(1) on a contingent basis in accordance with this subsection if the Secretary reasonably anticipated that the individual will have completed the requirements for appointment under such subsection (b)(1) by not later than two years after the date on which the individual is so appointed.

"(2) An individual who is appointed to a position on a contingent basis under paragraph (1) shall be appointed to such position on a permanent basis if, by not later than two years after the date of the contingent appointment, the individual completes all the requirements for appointment under subsection (b)(1).

"(3) An individual who is appointed on a contingent basis under paragraph (1) who fails to complete the requirements for appointment under subsection (b)(1) by not later than two years after the date on which the individual is so appointed may not be appointed to such position on a permanent basis.".

SEC. 712. AUTHORITY FOR SECRETARY OF VETERANS AFFAIRS TO AWARD GRANTS TO STATES TO IMPROVE OUTREACH TO VETERANS.

(a) IN GENERAL.—Chapter 63 of title 38, United States Code, is amended—

(1) by redesignating sections 6307 and 6308 and sections 6308 and 6309, respectively; and

(2) by inserting after section 6306 the following new section 6307:

"§6307. Grants to States to improve outreach to veterans

"(a) PURPOSE.—It is the purpose of this section to provide for assistance by the Secretary to States to carry out programs that—

"(1) improve outreach and assistance to veterans and the spouses, children, and parents of veterans, to ensure that such individuals are fully informed about any veterans and veterans-related benefits and programs (including State veterans programs) for which they may be eligible; and

"(2) facilitate opportunities for such individuals to receive competent, qualified services in the preparation, presentation, and prosecution of veterans benefits claims.

"(b) AUTHORITY.—The Secretary may award grants to States—

"(1) to carry out, coordinate, improve, or otherwise enhance outreach activities;

"(2) to increase the number of county or tribal veterans service officers serving in the State by hiring new, additional such officers; or

"(3) to expand, carry out, coordinate, improve, or otherwise enhance existing programs, activities, and services of the State's existing organization that has been recognized by the Department of Veterans Affairs pursuant to section 5902, in the preparation, presentation, and prosecution of claims for veterans benefits through representatives who hold positions as county or Tribal veterans service officers.

"(c) APPLICATION.— (1) To be eligible for a grant under this section, a State shall submit to the Secretary an application therefor at such time, in such manner, and containing such information as the Secretary may require.

"(2) Each application submitted under paragraph (1) shall include the following:

"(A) A detailed plan for the use of the grant.

"(B) A description of the programs through which the State will meet the outcome measures developed by the Secretary under subsection (i).

"(C) A description of how the State will distribute grant amounts equitably among counties (or Tribal lands, as the case may be) with varying levels of urbanization.

"(D) A plan for how the grant will be used to meet the unique needs of American Indian or Alaska Native veterans, elderly veterans, women veterans, and veterans from other underserved communities.

"(d) DISTRIBUTION.—The Secretary shall seek to ensure that grants awarded under this section are equitably distributed among States with varying levels of urbanization.

"(e) PRIORITY.—The Secretary shall prioritize awarding grants under this section that will serve the following areas:

"(1) Areas with a critical shortage of county or tribal veterans service officers.

"(2) Areas with high rates of—

"(A) suicide among veterans; or

"(B) referrals to the Veterans Crisis Line.

"(f) USE OF COUNTY OR TRIBAL VETERANS SERVICE OFFICERS.—A State that receives a grant under this section to carry out an activity described in subsection (b)(1) shall carry out the activity through—

"(1) a county or Tribal veterans service officer of the State; or

"(2) if the State does not have a county or tribal veterans service officer, or if the county or Tribal veterans service officers of the State cover only a portion of that State, an appropriate entity of a State, local, or Tribal government, or another publicly funded entity, as determined by the Secretary.

"(g) REQUIRED ACTIVITIES.—Any grant awarded under this section shall be used—

"(1) to expand existing programs, activities, and services;

"(2) to hire and maintain new, additional county or Tribal veterans service officers; or

"(3) for travel and transportation to facilitate carrying out paragraph (1) or (2).

"(h) OTHER PERMISSIBLE ACTIVITIES.—A grant under this section may be used to provide education and training, including on-the-job training, for State, county, local, and tribal government employees who provide (or when trained will provide) veterans outreach services in order for those employees to obtain and maintain accreditation in accordance with procedures approved by the Secretary.

"(i) OUTCOME MEASURES.—(1) The Secretary shall develop and provide to each State that receives a grant under this section written guidance on the following:

"(A) Outcome measures.

"(B) Policies of the Department.

"(2) In developing outcome measures under paragraph (1), the Secretary shall consider the following goals:

"(A) Increasing the use of veterans and veterans-related benefits, particularly among vulnerable populations.

"(B) Increasing the number of county and tribal veterans service officers recognized by the Secretary for the representation of veterans under chapter 59 of this title.

"(j) TRACKING REQUIREMENTS.—(1) With respect to each grant awarded under this section, the Secretary shall track the use of veterans benefits among the population served by the grant, including the average period of time between the date on which a veteran or other eligible claimant applies for such a benefit and the date on which the veteran or other eligible claimant receives the benefit, disaggregated by type of benefit.

"(2) Not less frequently than annually during the life of the grant program established under this section, the Secretary shall submit to Congress a report on—

"(A) the information tracked under paragraph (1);

"(B) how the grants awarded under this section serve the unique needs of American Indian or Alaska Native veterans, elderly veterans, women veterans, and veterans from other underserved communities; and

"(C) other information provided by States pursuant to the grant reporting requirements.

"(k) PERFORMANCE REVIEW.—(1) The Secretary shall—

"(A) review the performance of each State that receives a grant under this section; and

"(B) make information regarding such performance publicly available.

"(l) REMEDIATION PLAN.—(1) In the case of a State that receives a grant under this section and does not meet the outcome measures developed by the Secretary under subsection (i), the Secretary shall require the State to submit a remediation plan under which the State shall describe how and when it plans to meet such outcome measures.

"(2) The Secretary may not award a subsequent grant under this section to a State described in paragraph (1) unless the Secretary approves the remediation plan submitted by the State.

"(m) MAXIMUM AMOUNT.—The amount of a grant awarded under this section may not exceed 10 percent of amounts made available for grants under this section for the fiscal year in

which the grant is awarded.

"(n) SUPPLEMENT, NOT SUPPLANT.—Any grant awarded under this section shall be used to supplement and not supplant State and local funding that is otherwise available.

"(o) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary for each of fiscal years 2023 through 2027, $50,000,000 to carry out this section.

"(p) DEFINITIONS.—In this section:

"(1) The term 'county or tribal veterans service officer' includes a local equivalent veterans service officer.

"(2) The term 'State' includes each Indian Tribe, the District of Columbia, the Commonwealth of Puerto Rico, the Commonwealth of the Northern Mariana Islands, and any territory or possession of the United States.

"(3) The term 'Veterans Crisis Line' means the toll-free hotline for veterans established under section 1720F(h) of this title.".

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 63 of such title is amended by striking the items relating to sections 6307 and 6308 and inserting the following new items:

"6307. Grants to States to improve outreach to veterans.

"6308. Outreach for eligible dependents.

"6309. Biennial report to Congress.".

(c) AUTHORIZATION OF ADDITIONAL FULL-TIME EQUIVALENT EMPLOYEE.—During fiscal years 2023 through 2027, the Secretary of Veterans Affairs may hire an additional full-time equivalent employee in the Office of the General Counsel of the Department of Veterans Affairs, as compared to the number of full-time equivalent employees that would otherwise be authorized for such office, to carry out duties under the accreditation, discipline, and fees program.

SEC. 713. STUDY AND REPORT ON HERBICIDE AGENT EXPOSURE IN PANAMA CANAL ZONE.

(a) STUDY.—The Secretary of Defense shall conduct a study on the exposure of members of the Armed Forces to herbicide agents, including Agent Orange and Agent Purple, in the Panama Canal Zone during the period beginning on January 1, 1958, and ending on December 31, 1999.

(b) REPORT.—Not later than one year after the date of the enactment of this Act, the Secretary shall submit to Congress a report on the study conducted under subsection (a).

SEC. 714. BUDGET INFORMATION FOR ALTERNATIVES TO BURN PITS.

The Secretary of Defense shall include in the budget submission of the President under section 1105(a) of title 31, United States Code, for each of fiscal years 2023 through 2027, a dedicated budget line item for incinerators and waste-to-energy waste disposal alternatives to burn pits.

SEC. 715. AUTHORIZATION OF APPROPRIATIONS FOR EXPANSION OF CLAIMS AUTOMATION.

There is authorized to be appropriated to the Secretary of Veterans Affairs $150,000,000 for fiscal year 2023 to continue the modernization and expansion of capabilities and capacity of the Veterans

Benefits Management System of the Department of Veterans Affairs to support expected increased claims processing for newly eligible veterans pursuant to this Act and the amendments made by this Act.

SEC. 716. BURN PIT REGISTRY UPDATES.

(a) INDIVIDUALS ELIGIBLE TO UPDATE.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall take actions necessary to ensure that the burn pit registry may be updated with the cause of death of a deceased registered individual by—

(A) an individual designated by such deceased registered individual; or

(B) if no such individual is designated, an immediate family member of such deceased registered individual.

(2) DESIGNATION.—The Secretary shall provide, with respect to the burn pit registry, a process by which a registered individual may make a designation for purposes of paragraph (1)(A).

(b) DEFINITIONS.—In this section:

(1) The term "burn pit registry" means the registry established under section 201 of the Dignified Burial and Other Veterans' Benefits Improvement Act of 2012 (Public Law 112–260; 38 U.S.C. 527 note).

(2) The term "immediate family member", with respect to a deceased individual, means—

(A) the spouse, parent, brother, sister, or adult child of the individual;

(B) an adult person to whom the individual stands in loco parentis; or

(C) any other adult person—

(i) living in the household of the individual at the time of the death of the individual; and

(ii) related to the individual by blood or marriage.

(3) The term "registered individual" means an individual registered with the burn pit registry.

SEC. 717. BURN PIT TRANSPARENCY.

(a) SHORT TITLE.—This section may be cited as the "SFC Heath Robinson Burn Pit Transparency Act".

(b) NOTIFICATIONS AND REPORTS REGARDING REPORTED CASES OF BURN PIT EXPOSURE.—

(1) QUARTERLY NOTIFICATIONS.—

(A) IN GENERAL.—On a quarterly basis, the Secretary of Veterans Affairs shall submit to the appropriate congressional committees a report on each reported case of burn pit exposure by a covered veteran reported during the previous quarter.

(B) ELEMENTS.—Each report submitted under subparagraph (A) shall include, with respect to each reported case of burn pit exposure of a covered veteran included in the report, the following:

(i) Notice of the case, including the medical facility at which the case was reported.

(ii) Notice of, as available—

(I) the enrollment status of the covered veteran with respect to the patient enrollment system of the Department of Veterans Affairs under section 1705(a) of title 38, United States Code;

(II) a summary of all health care visits by the covered veteran at the medical facility at which the case was reported that are related to the case;

(III) the demographics of the covered veteran, including age, sex, and race;

(IV) any non-Department of Veterans Affairs health care benefits that the covered veteran receives;

(V) the Armed Force in which the covered veteran served and the rank of the covered veteran;

(VI) the period in which the covered veteran served;

(VII) each location of an open burn pit from which the covered veteran was exposed to toxic airborne chemicals and fumes during such service;

(VIII) the medical diagnoses of the covered veteran and the treatment provided to the veteran; and

(IX) whether the covered veteran is registered in the Airborne Hazards and Open Burn Pit Registry.

(C) PROTECTION OF INFORMATION.—The Secretary shall ensure that the reports submitted under subparagraph (A) do not include the identity of covered veterans or contain other personally identifiable data.

(2) ANNUAL REPORT ON CASES.—

(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and annually thereafter, the Secretary of Veterans Affairs, in collaboration with the Secretary of Defense, shall submit to the appropriate congressional committees a report detailing the following:

(i) The total number of covered veterans.

(ii) The total number of claims for disability compensation under chapter 11 of title 38, United States Code, approved and the total number denied by the Secretary of Veterans Affairs with respect to a covered veteran, and for each such denial, the rationale of the denial.

(iii) A comprehensive list of—

(I) the conditions for which covered veterans seek treatment; and

(II) the locations of the open burn pits from which the covered veterans were exposed to toxic airborne chemicals and fumes.

(iv) Identification of any illnesses relating to exposure to open burn pits that formed the basis for the Secretary to award benefits, including entitlement to service connection or an increase in disability rating.

(v) The total number of covered veterans who died after seeking care for an illness relating to exposure to an open burn pit.

(vi) Any updates or trends with respect to the information described in clauses (i), (ii), (iii), (iv), and (v) that the Secretary determines appropriate.

(B) MATTERS INCLUDED IN FIRST REPORT.—The Secretary shall include in the first report under paragraph (1) information specified in paragraph (1)(B) with respect to reported cases of burn pit exposure made during the period beginning January 1, 1990, and ending on the day before the date of the enactment of this Act.

(3) INFORMATION REGARDING THE AIRBORNE HAZARDS AND OPEN BURN PIT REGISTRY.—

(A) NOTICE.—The Secretary of Veterans Affairs shall ensure that a medical professional of the Department of Veterans Affairs informs a veteran of the Airborne Hazards and Open Burn Pit Registry if the veteran presents at a medical facility of the Department for treatment that the veteran describes as being related to, or ancillary to, the exposure of the veteran to toxic airborne chemicals and fumes caused by open burn pits.

(B) DISPLAY.—In making information public regarding the number of participants in the Airborne Hazards and Open Burn Pit Registry, the Secretary shall display such numbers by both State and by congressional district.

(4) COMPTROLLER GENERAL REPORT.—Not later than 180 days after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the appropriate congressional committees a report containing an assessment of the effectiveness of any memorandum of understanding or memorandum of agreement entered into by the Secretary of Veterans Affairs with respect to—

(A) the processing of reported cases of burn pit exposure; and

(B) the coordination of care and provision of health care relating to such cases at medical facilities of the Department of Veterans Affairs and at non-Department facilities.

(5) DEFINITIONS.—In this section:

(A) The term “Airborne Hazards and Open Burn Pit Registry” means the registry established by the Secretary of Veterans Affairs under section 201 of the Dignified Burial and Other Veterans' Benefits Improvement Act of 2012 (Public Law 112–260; 38 U.S.C. 527 note).

(B) The term “appropriate congressional committees” means—

(i) the Committee on Veterans’ Affairs and the Committee on Armed Services of the Senate; and

(ii) The Committee on Veterans’ Affairs and the Committee on Armed Services of the House of Representatives.

(C) The term “covered veteran” means a veteran who presents at a medical facility of the Department of Veterans Affairs (or in a non-Department facility pursuant to section 1703 or 1703A of title 38, United States Code) for treatment that the veteran describes as being related to, or ancillary to, the exposure of the veteran to

toxic airborne chemicals and fumes caused by open burn pits at any time while serving in the Armed Forces.

(D) The term "open burn pit" has the meaning given that term in section 201(c) of the Dignified Burial and Other Veterans' Benefits Improvement Act of 2012 (Public Law 112–260; 38 U.S.C. 527 note).

(E) The term "reported case of burn pit exposure" means each instance in which a veteran presents at a medical facility of the Department of Veterans Affairs (or in a non-Department facility pursuant to section 1703 or 1703A of title 38, United States Code) for treatment that the veteran describes as being related to, or ancillary to, the exposure of the veteran to toxic airborne chemicals and fumes caused by open burn pits at any time while serving in the Armed Forces.

Passed the House of Representatives March 3, 2022.

Attest:

CHERYL L. JOHNSON,

Clerk.

Calendar No. 388

117TH CONGRESS
2D SESSION

H. R. 3967

AN ACT

To improve health care and benefits for veterans exposed to toxic substances, and for other purposes.

MAY 25, 2022
Read the second time and placed on the calendar